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ETHICS NOTES

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GS4

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UPSC IAS ETHICS NOTES FOR GS 4

As we know that marks of GS4 plays crucial role in selection, we have prepared comprehensive material for the UPSC CSE Aspirants

Features :

- To the point content, nothing irrelevant added to **save time and effort of students**
- Very **simple definitions** and **explanations**
- **Rich in examples** for easier understanding as well as to **score high marks in exam**, writing examples in every answer is crucial so we have added ample examples that can be directly used by students.

Topics Covered :

- Ethics
- Attitude
- Foundational Values, (Integrity, Impartiality, Non Partisanship, Objectivity, Dedication to Civil Services, Empathy, Tolerance, Compassion, Selflessness, Accountability, Openness, Leadership, Confidentiality, Prudence)
- Emotional Intelligence
- Status of Public Services Values and Ethics in Administration
- Ethical Dilemma
- Code of Ethics
- Probity in Governance

(Moral Thinkers + 2nd ARC Summary, Would be covered in Part 2)

ETHICS

“In just about every area of society, there’s nothing more important than ethics”-

--HENRY PAULSON

Basics Definition and Explanation

- At its simplest, ethics is a system of moral principles. They affect how people make decisions and lead their lives.
- Ethics is concerned with what is good for individuals and society and is also described as moral philosophy..

Ethics Covers The Following Dilemmas :

- how to live a good life ?
- our rights and responsibilities ?
- the language of right and wrong ?
- moral decisions - what is good and bad?
- ❖ Ethics help us navigate the area between what is absolutely right and what is morally wrong. They provide the structure that helps us make a decision we can be proud of in the context of our societal, familial and personal value structures.
- ❖ Ethics seeks to resolve questions of human morality by defining concepts such as good and evil, right and wrong, virtue and vice, justice and crime. As a field of intellectual inquiry, moral philosophy also is related to the fields of moral psychology, descriptive ethics, and value theory.

EXAMPLES :

- Different societies make different individuals. For instance, in south India, many communities there practice matrilineal marriage system. In north India, on the other hand, patrilineal marriage is the norm.
- If making money is a value by any particular culture’s standards without consideration about how that money is being made then the act of making money itself seems right to a person from that culture irrespective of the means of making that money.
- Breaking of traffic signal by ambulance is illegal but saving life is an act of ethical conduct

- The pardoning power of President Respite is against law but Ethical condition like pregnancy can be considered.
- Death sentence for crime is legally correct but act of Unethical.
- Harassing a tax evader may be legally correct but Ethically wrong as it may lead to death (Tax Terrorism).
- A child learns at school that honesty is always rewarded. But at home he/she realize that it is not always true. How? He/she got beaten by parents for telling the truth that father is actually at home not at kirana store.
- In my 10th Standard Board exams, in English Paper, we were asked to write the opposite of POPULAR. I had written IMPOPULAR. Then, exam invigilator who was walking accidentally saw my answer script and told me, the correct answer is UNPOPULAR. However, I did not change my answer.
- One Saturday, I ate IDLI at Parimala Hotel in Tumakuru Bus stand. I forgot to pay the money and came out of the hotel. Even hotel people did not ask me. I realized that in the evening when I found excess money in my pocket. Then I promptly went to the hotel, said sorry and paid the money on Monday morning.

Ethics, as far as the administration is concerned, shall mean when a civil servant pledges himself to:-

- Uphold the rule of law
- Promote an open and transparent administration
- Promote clean administration
- Promote accountability for actions
- Observe complete political neutrality
- Give free, frank, objective and unbiased advice
- Uphold, preserve and strengthen the interests of the weaker sections of society
- Uphold and strengthen human rights
- Adhere to and encourage secularism; gratification
- Not to accept or give any money to other allurements as illegal gratification
- Uphold the integrity not only of self but also of the system as a whole
- Scrupulously observe standards of rectitude and undertake not to approach any politician, industrialist or any outside the normal hierarchy for obtaining any postings, transfers and personal benefits of any kind
- Strive to be a role model for others
- **Empathetic orientation towards citizens / customers:** The Administrators' ability to understand the customers' needs and requirements, from their perspective, and realistically appraise whether or not something is doable.

- **Commitment to excellence:** Individual commitment to help citizens in achieving their goals / objectives within the given resources.
- **Responsiveness:** Administrators taking responsibility for creating a delightful experience for citizens / customers and solving their problems.
- **Reliability and trustworthiness:** The administrators ability to generate trust and win the confidence of customers / citizens.
- **Creative problem solving ability:** The administrator's ability to come up with innovative solutions to customer problems within the given constraints.
- **Timeliness:** An administrator's ability to accomplish things within time constraints and deadlines.
- **Tolerance for pressure:** An administrator's ability to maintain control and poise in the face of adversity and political pressures.
- **Service recovery mind-set:** An administrator's ability to undo the bad service experience of a citizen / customer by taking the required corrective action there and then itself

Ethical Behaviour :

Sherman (1998: 15) discovered the following values that are most common:

- Honesty and integrity
- Impartiality
- Respect for the law
- Respect for persons
- Diligence
- Economy and effectiveness
- Responsiveness
- Accountability

Ethical Behavior in Public Services

- ❖ **Integrity:** The quality of being honest and having strong moral principles. It is the quality of being perfect and undivided. A person of integrity shows steadfast adherence to a strict moral or ethical code.
- ❖ **Perseverance:** Perseverance corresponds to persistence in doing something despite difficulty or delay in achieving success. It is the quality that allows someone to continue trying to do something even though it is difficult.

- ❖ **Spirit of service**: Quality of being committed to public service without any self-motives.
- ❖ **Commitment**: The state or quality of being dedicated to a cause, activity, etc.
- ❖ **Courage of conviction**: The state or quality of mind or spirit that enables one to face danger or fear with self-possession, confidence and resolution. The term defines one form of courage or bravery, which makes one to take strong decisions without any fear of repercussions. Courage of conviction makes one to admit his mistakes and denounce other's false actions

Different Types of Ethics

Prescriptive(Normative Ethics)

The largest branch, it deals with how individuals can figure out the correct moral action that they should take. Philosophers such as **Socrates** and **John Stuart Mill** are included in this branch of ethics. It deals with questions like: How should people act? What is the correct action?

For example- Since we don't want our neighbours to throw stones on our glass window, then it will not be wise to first throw stones on a neighbour's window.

Examples of normative ethical claims would include: "Murder is wrong." "Giving to charity is good, but not ethically mandatory." "Conflict of interest must be handled carefully."

The different branches are:

- Virtue Ethics
- Consequentialism
- Deontological Ethics

Meta-Ethics

This branch seeks to understand the nature of ethical properties and judgments such as if truth values can be found and the theory behind moral principles. It also deals with questions like: What are the meanings of ethical terms: right, wrong, love, compassion? It also questions whether moral judgments are universal or relative, and if they are of one kind or many.

For example, a moral nihilist would say that killing someone, for whatever reason, is intrinsically neither morally right nor morally wrong.

EXAMPLE: We should fight to free slaves when necessary, even when doing so is illegal.

Applied Ethics

This is the study of applying theories from philosophers regarding ethics in everyday life. This uses application of moral knowledge to practical problems and uses philosophical methods to identify the morally correct course of action in various fields of human life.

For example, the bioethics community is concerned with identifying the correct approach to moral issues in the life sciences, such as euthanasia, the allocation of scarce health resources, or the use of human embryos in research.

For example, this area of ethics asks questions such as "Is it right to have an abortion?" and "Should you turn in your friend at your workplace for taking home office supplies?"

Moral Ethics

This branch questions how individuals develop their morality, why certain aspects of morality differ between cultures and why certain aspects of morality are generally universal.

For example, it's common to say, "My **morals** prevent me from cheating."

Descriptive Ethics

This branch is more scientific in its approach and focuses on how human beings actually operate in the real world, rather than attempt to theorize about how they should operate. . It deals with questions like: What do people think is right? It is different from normative and applied ethics.

EXAMPLE: Different societies have different moral standards.

Different Approaches to Ethics

Such dimensions include **Utilitarian approach**, **Rights approach**, **Justice Approach**, **Common Good approach** and **Virtue approach**.

Utilitarian Approach The concept of Utilitarianism was **given by Jeremy Bentham and John Stuart Mill** in the 19th century. As per this approach, the ethical actions are those that provide the greatest balance of good over evil. In this context, war against terror is ethical because it tries to curb death and injury to innocent people.

Rights Approach This theory emanates from **philosophy of Immanuel Kant** et al and is based on actions based on free will. This approach supports that individuals have dignity on their ability to freely choose what they do with their life and have basic moral right to do so. Anything that respects this moral right is ethical.

Justice Approach This approach emanates from the **philosophy of Aristotle** and other Greek Philosophers, and says that all equals should be treated equally. This approach asks- how fair is an action? And does it manifest in favoritism or discrimination? The core idea is that ethical actions treat all human beings equally and fairly.

Common Good Approach This approach also emanates from the **writings of Plato, Aristotle and Cicero**. The core idea is that ethical actions are those which result in everyone's advantage.

Virtue Approach This theory says that the ethical actions ought to be consistent with certain ideal virtues that provide for the full development of our humanity. Some of the virtues include honesty, courage, compassion, generosity, tolerance, love, fidelity, integrity, fairness, self-control, prudence etc.

Sources for Ethics, like Constitution, Social Values etc

In the Indian context, such values are most significantly expressed

in the Preamble, the Fundamental Rights, The Directive Principles of State Policy and The Fundamental Duties enshrined in the Constitution.

CONSTITUTIONAL VALUES

- ❖ Our constitution is committed towards certain principles to its people as prescribed by the Preamble, they are:

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- ❖ **Sovereignty**- It essentially means the people of the country are sovereign & elect their representatives to govern them in the best possible manner.
- ❖ **Socialism**- It means ownership of the means of production belongs to the people as a whole which indicate distributive justice.
- ❖ **Secularism**- State should not discriminate negatively or positively towards any religion.
- ❖ **Democracy**- Rule by people
- ❖ **Republic**- It means that supreme power lies in the body of citizens. Head of the state is elected & not a hereditary institution like the monarchy.
- ❖ **Justice**-Social, economic & political. Which essentially means the society progress together without any sections left unattended to & rule of law prevail throughout the country.
- ❖ **Equality**- of status & opportunity seeks to empower the marginalized sections of the society with certain affirmative action.
- ❖ **Fraternity**- means common brotherhood of all Indians, assuring the dignity of all individuals.

The foundational values for a public service are best exemplified by the Seven Principles of Public Life given by the **Nolan Committee (Standards in Public Life-1994)**.

1. **Selflessness**: act only in public interest, without seeking gain for oneself.
2. **Integrity**: resist outside influence in the performance of duties.
3. **Objectivity**: make choices on the basis of merit.
4. **Accountability**: must submit to whatever scrutiny is appropriate.
5. **Openness**: restrict information only when the wider public interest demands so.
6. **Honesty**: declare any private interest related to public duties and resolve any conflicts that arise.
7. **Leadership**: lead by example

Source of ethics can be:

- God and religion. **Eg.:** Mahabharata teaches to follow dharma.
- Human conscience and intuition. **Eg:** helping a blind man cross the street.
- Moral cost-benefit analysis of actions and their effects. **Eg:** Greatest good for the greatest number of people.
- Like a good human. **Eg:** A virtuous person is kind, so should you.
- Circumstantial reasoning, as in unique situations might demand different behavior than usual. **Eg:** If asked by goons which way the victim ran, lie; don't tell the truth.

- Society, family, culture and political ideologies. **Eg:** Debate on abortion.

General social values:

- Public sector's contribution to society: Common good, altruism, sustainability, regime dignity.
- Transformation of interests to decisions: Majority rule, user democracy, protection of minorities.
- Relationship between public administrators and politicians: Political loyalty.
- Relationship between public administrators and their environment: Openness-secrecy, advocacy-neutrality, competitiveness-cooperativeness.

The various other sources of ethics are as follows:

- **Teachers and parents:** They can help children in schools and at homes to cultivate essential human values in their early formative years, and even in later phases.
- **Laws:** Laws lay down the basic framework for ethical action, and indicate the guidelines for such action.
- **Society:** It plays a crucial role in laying down the norms for acceptable community behaviour.
- **Conscience:** Our inner conscience perhaps serves as the final point, where the actual decision-making about what is ethical, and what is not, are eventually made.
- **Human values:** The determinants of ethics are often regarded as the universal human values such as truthfulness, honesty, integrity, etc.

Core Ethical Values	Supporting Ethical Principles
Trustworthiness	truthfulness, sincerity, candor, integrity, promise keeping, loyalty, honesty
Respect	respect, autonomy, courtesy, self-determination
Responsibility	responsibility, diligence, continuous improvement, self-restraint
Fairness	justice, fairness, impartiality, equity
Caring	caring, kindness, compassion
Citizenship	citizenship, philanthropy, voting

Importance of Ethics in Personal Life

Each private relationship has its own irreplaceable value. Each of it has its own history, significance, character, and set of implicit and explicit understandings. Ethics in private relationship are generally directed by individual virtues, Universal human values, religion, social norms and law of land .Therefore they comprise limited influencing factors.

- **Guidance in Decision making:** They help us in deciding whether preferences or events are good or bad, right or wrong, desirable or worthless, important or significant. They help us to resolve ethical dilemmas.
- **Stability in Life:** They play an important role in the integration and fulfillment of man's basic impulses and desire in a stable and consistent manner appropriate for his living.
- **Act as Determinants:** They are basic determinants of our perception, opinions and attitudes. **Eg:** value of quality leads to right attitude of men towards women
- **Helps in Evaluation of options before Action:** Using Ethical means going through certain processes such as motivation, selection appraisal based on the given value system.
- **Help in Character Development:** Adherence to good values such as honesty, truth, equality leads to character development of citizens of a nation.

- **Social Function/Unity:** It derived from commonality of experience unite families, tribes, societies and nations. This lead to peace and harmony.
- **Application in Specific Domain:** Organizational values such public service transparency can help organization to grow and gain public trust. Environmental ethics can lead to protection and conservation of our environment.

Ethics forms the very ground base of any individual's life. Use of ethics in life is –

- It provides basic understanding to discriminate between right & wrong. **For e.g. Communalism & secularism.**
- Ethical value provides structure to social fabric of society. **For e.g. Society based on certain religious & cultural values.**
- Help us to take right decision in life. **For e.g. One should help downtrodden**
- Allow us to mark the reasonableness of situation. **For e.g. Domestic violence is bad for society.**
- It also provides meaningful life to individual. **For e.g. compassion towards poor.**

Challenges to Ethics

Although value conflicts occur in manifold areas and at all levels of the public service, there are specific challenges to current public service values which are considered here. They arise in the context of:

1. New modes of governance
2. Market-based reforms
3. Politicisation
4. Agencification
5. Decentralisation/relocation
6. Changes in HRM and recruitment
7. ICT.

Importance of Ethics in Professional Life, Especially Civil Services

- ❖ Public life are more instrumental as organizational colleagues, politicians, strangers and other outside of one's relatively narrow circle of intimacy. It is a management function that engages monitoring and evaluating public attitudes and maintaining mutual relations and understanding between an organization and its public.

- ❖ Ethics in public relationship are governed by power .They comprise contradictory values and influence ethical decisions in public relationships .It is significant to follow ethical standards in public setting to sustain authority, develop confidence among people about the system , and to accomplish social wellbeing of society.

In public relationships, public officials need to cope with four primary cluster of roles which are:

- His role in his personal and family sphere.
 - His role as a professional.
 - His role towards his jurisdiction, community and work influence.
 - His role towards society and humanity at large.
- ❖ Public servant must have to adjust with cluster of roles .Each role in the cluster has different concerns, values, and standards of behaviors .Each is marked by a mix of ethical claim. Some duties are responsibilities and informal. Others are obligation and formal.
- ❖ Values, standards and ethics in public life are major concerns since earlier time in administrative system. Ethics, whether in an entire society, or in a social sub-system, evolves from ancient times and is influenced, during its nurturance and growth, by a variety of environmental factors.
- ❖ Ethical behavior and decisions maintaining citizens' trust, guarantee effective use of resources, and allow the government to preserve individual rights while assisting those who will benefit the most. Ethics is one of the prime components that allow democracy to succeed in any country.
- ❖ For bureaucracies, adherence to high-level public service values can produce substantial public trust and assurance.
- ❖ As public administrators' values are developed through an interaction of self, situation and society, it is important that values are therefore periodically re-examined and challenged.
- ❖ Public service organisations operate in environments subject to regular change and replete with competing demands and obligations. Process is as important as outcomes and public trust is predicated on democratic values being represented at all stages in the decision making process.
- ❖ The effective operation of democratic government requires that public officials and employees be independent, impartial, and responsible to the people. Government decisions and policies should be made within the proper structure of government; public office shall not be used for personal gain; and the public has to have confidence in the honesty of its government.

- ❖ When ethical wrongdoings and scandals occur in government, they pose a threat to the democratic ideologies of the rule of law, equity, and individual rights. Fraud, bribery, and other abuses in government take the power from people and give it to a few in position of control, which distorts the concept of the equality of all participants of public life.
- ❖ A succinct, well-publicised statement of core ethical standards and principles that guide public service in the form of a code of conduct, can accomplish by creating a shared understanding across government and within the broader community.

Ethical Considerations for a Public Administrator

Ethical	Democratic	Professional	People
Integrity	Rule of Law	Effectiveness	Caring
Fairness	Neutrality	Efficiency	Fairness
Accountability	Accountability	Service	Tolerance
Loyalty	Loyalty	Leadership	Decency
Respect	Responsiveness	Innovation	Courage
Honesty	Representativeness	Quality	Benevolence
Probity	Legality	Creativity	Humanity

Professional values:

- Intra-organisational aspects of public administration: Robustness, innovation, productivity, self-development of employees.
- Behaviour of public sector employees: Accountability.

- Relationship between public administration and the citizens: Legality, equity, dialogue, user orientation.

Problems of public service values:

Many economists and public service experts have realized that the significance of public values have been declined. Bozeman (2002) stated emerging problems of public value failure. These failures occurs when:

1. Mechanism for articulation and aggregation of values has broken down.
2. Imperfect monopolies occur.
3. Benefit hoarding occurs.
4. There is a scarcity of providers of public values.
5. A short time horizon threatens public value.
6. A focus on sustainability of assets threatens conservation of public resources.
7. Market transactions threatens fundamental human subsistence.

Suggestions to Impart Ethical Values To General Population

These values are provided by a series of agents be it institutions or individuals. They are:

Parenting:

Family is the first home of citizenship and mother is the first and most important teacher of the child. From mother, he/she would learn values like truthfulness, honesty, love, respect for elders and selfless service etc. It is said that parents are first moral teachers. They give children ideas about morality.

School: It is an institution where values are imbibed through moral education. Through this education child would be able to develop moral aptitude which would enable him to imbibe traits and values which are desirable.

Religion: This institution either through scriptures or preaching frames our values.

For example in Ramayana character of Lord Hanuman is representation of trait of dedication towards a particular goal. However wrong interpretation for personal gains has led to fundamentalism, communalism.

Peer group: They are individuals who are going through the same process i.e mental, physical and biological changes. Hence they are in a better position to understand any problem of a child. Hence they become a reference group for individuals' behavior.

Conscience helps neutralize conflicts: In situations where the law is silent, the voice of conscience assumes significance. This means that if there are no available or applicable laws, an individual's conscience will help recognize the ethical dimensions that are involved and thus determine the most appropriate course of action.

Conscience helps an individual maintain a balance between his rights and entitlements on one hand and his duties and responsibilities on the other. A decision influenced by a sound conscience is not just confined to legal prerogatives but is also consistent with a comprehensive sense of duty and responsibility.

(a) Participation: All men and women should have a voice in decision-making, either directly or through legitimate intermediate institutions that represent their interests. Such broad participation is built on freedom of association and speech, as well as on the capacity to participate constructively.

(b) Rule of law: Legal frameworks should be fair and enforced impartially, particularly the laws on human rights.

(c) Transparency: This concept is built on the free flow of information. Processes, institutions and information should be directly accessible to those concerned, and enough information should be provided to render them understandable and monitorable.

(d) Responsiveness: Institutions and processes should serve all stakeholders.

(e) Consensus Orientation: Good governance should mediate differing interests in order to reach broad consensus on the best interests of the group and, where possible, on policies and procedures.

(f) Equity: All men and women should have equal opportunity to maintain or improve their well-being.

(g) Effectiveness and Efficiency: Processes and institutions should produce results that meet needs while making the best use of resources.

(h) Accountability: Decision-makers in government, the private sector and civil society organizations should be accountable to the public as well as to institutional

stakeholders. This accountability differs depending on the organization and whether the decision is internal or external to an organization.

(i) Strategic Vision: Leaders and the public should have a broad and long-term perspective on good governance and human development, together with a sense of what is needed for such development. There should also be an understanding of the historical, cultural and social complexities in which that perspective is grounded.

Suggestions to Impart Ethical Values To Civil Services

Kautilya in his Arthashastra emphasised on the importance of the common citizens: “It is the people who constitute a kingdom; like a barren cow, a kingdom without people yields nothing”. Thus the success of the administration depends upon the involvement, commitment, dedication and sacrifice with which the public servants put their efforts for the welfare of the teeming millions in the country.

A public servant with proper values such as empathy, compassion, non partisanship, objectivity, integrity, tolerance, dedication to public services can make public services more efficient and citizen centric. In such a context it becomes imperative that every public servant has such values.

Methods to Instill Public Service Values in Public Servants

- Rewards for better performance and punishment for deviant behavior.
- Values such as objectivity could be strengthened with unambiguous code of ethics and citizen charters.
- Regular ethical auditing.
- Emphasising on values to be present in public servants at the time of training.
- Regular counseling services and sensitive training by role model civil servants such as **O.P. Chaudhary** in between tenure of public servants.
- Good and strong work culture could promote strong values. This could be done by focusing more on whether public service values of senior officials are on the right track.
- As public servants are product of society a good socialization mechanism through value based education, democratic parenting etc must be ensured.
- Enhancing transparency and accountability through mechanisms such as social auditing and 360 degree surveillance mechanisms.
- Government policies must clearly frame their ethical position.

- Clear guidelines for interaction between public and private services.

Above measures if properly implemented would lead to public servants who are compliant with public service values. However contribution from all stakeholders such as politicians, Education system, family, pressure groups and civil servants themselves would make this process foolproof.

Principles To Manage Ethics In The Public Service

- Ethical standards for public service should be clear.
- Ethical standards should be reproduced in the legal framework.
- Ethical supervision should be available to public servants.
- Public servants should know their rights and obligations when exposing wrongdoing.
- Political commitment to ethics should reinforce the ethical conduct of public servants.
- The decision -making process should be transparent and open to scrutiny.
- There should be clear guidelines for interaction between the public and private sectors.
- Managers should demonstrate and promote ethical conduct.
- Management policies, procedures and practices should promote ethical conduct.
- Public service conditions and management of human resources should promote ethical conduct.
- Adequate accountability mechanisms should be in place within the public service.
- Appropriate procedures and sanctions should exist to deal with misconduct.

Currently, the concept of ethics has extended itself to involve all major areas of human existence. There are certain prominent aspects of ethics in public administration. These are summarized as following maxims:

Maxim of Legality and Rationality: An administrator will follow the law and rules that are framed to govern and guide various categories of policies and decisions.

Maxim of Responsibility and Accountability: An administrator would not hesitate to accept responsibility for his decision and actions. He would hold himself morally responsible for his actions and for the use of his discretion while making decisions.

Moreover, he would be willing to be held accountable to higher authorities of governance and even to the people who are the ultimate beneficiaries of his decisions and actions.

Maxim of Work Commitment: An administrator would be committed to his duties and perform his work with involvement, intelligence and dexterity.

It is well explained by **Swami Vivekananda**. He observed, “Every duty is holy and devotion to duty is the highest form of worship.” This would also entail a respect for time, punctuality and fulfillment of promises made. Work is considered not as a burden but as an opportunity to serve and constructively contribute to society.

Maxim of Excellence: A bureaucrat would ensure the highest standards of quality in administrative decisions and action and would not compromise with standards because of convenience or complacency.

In a competitive international environment, an administrative system should faithfully adhere to the requisites of Total Quality Management.

Maxim of Fusion: An administrator would reasonably bring about a combination of individual, organisational and social goals to help evolve agreement of ideals and imbibe in his behaviour a commitment to such a fusion.

In situation of conflicting goals, a concern for ethics should govern the choices made.

Maxim of Responsiveness and Resilience: An administrator would respond successfully to the demands and challenges from the external as well as internal environment. He would adapt to environmental transformation and yet sustain the ethical norms of conduct.

In situations of deviation from the prescribed ethical norms, the administrative system would show flexibility and bounce back into the accepted ethical mould at the earliest opportunity.

Maxim of Utilitarianism: While devising and implementing policies and decisions, an administrator will certify that these lead to the greatest good (happiness, benefits) of the greatest number.

Maxim of Compassion: An administrator, without violating the prescribed laws and rules, would establish compassion for the poor, the disabled and the weak while using his discretion in making decisions.

At least, he would not grant any benefits to the stronger section of society only because they are strong and would not deny the due consideration to the weak, despite their weakness.

Maxim of National Interest: Though universalistic in orientation and liberal in outlook, a civil servant, while performing his duties, would keep in view the impact of his action on his nation's strength and prestige.

Maxim of Justice: Executives who are responsible for formulation and execution of policies and decisions of governance would ensure that respect is shown to the principles of equality, equity, fairness, impartiality and objectivity and no special favours are given on the criteria of status, position, power, gender, class, caste or wealth.

Maxim of Transparency: An administrator will make decisions and implement them in a transparent manner so that those affected by the decisions and those who wish to evaluate their rationale, will be able to understand the reasons behind such decisions and the sources of information on which these decisions were made.

Maxim of Integrity: An administrator would accept an administrative action on the basis of honesty and not use his power, position and discretion to serve his personal interest and the illegitimate interests of other individuals or groups.

ATTITUDE

BASIC DEFINITION AND EXPLANATION

“Attitude is a little thing that makes a big difference.” – Winston Churchill.

Definition - Attitude simply defined as opinion/views, beliefs and evaluation of a person towards a person (including oneself), place, thing, event, idea, object or action either positive or negative.

For example:

When passing through road you see a group of people protesting against an events, the mental construct that you create for/against the protesting crowd is an attitude you just generated.

A person with a negative attitude pays attention to other people's shortcomings, while a person with a positive attitude pays attention to the virtues of others. Therefore all variables must be identified and analysed which help in the formation of favourable attitudes.

Attitude influences an individual's choice of action, and responses to challenges, incentives, and reward. Attitude formation occurs through either direct experience or the persuasion of others or the media.

GORDON ALLPORT definition of Attitude :- “A mental and neural state of readiness, organized through experience, exerting a directive or dynamic influence upon the individual's response to all objects and situations with which it is related”

- A **positive attitude** is a good thing, or a result greater than zero, or something that represents an affirmation. An **example** of a **positive attitude** is a result on a pregnancy test saying that you're pregnant and you are happy by listening to this.
- A **negative attitude** is a disposition, feeling, or manner that is not constructive, cooperative, or optimistic. **Examples of negative attitudes** include: Improper thoughts inside your head, like 'I am not good enough', **Negative** assumptions about others or their intents.

Carl Jung, one of the founders of psychoanalysis, is of the opinion that the contents of the conscious and unconscious part of the mind are usually different. Accordingly, **attitudes are classified as explicit and implicit.**

Explicit Attitude (Conscious) – If a person is aware of his attitudes and how they influence his behaviour, then those attitudes are explicit. Explicit attitudes are formed consciously.

Implicit Attitude (Subconscious) – If a person is unaware of his attitudes (beliefs) and how they influence his behaviour, then those attitudes are implicit. Implicit attitudes are formed sub-consciously .

ATTITUDE STRUCTURE

Three components of Attitudes generally known as ABC

- **AFFECTIVE** (e.g. fear, sympathy, hate like, pleasure, feeling, emotion etc).
- **BEHAVIOURAL** (sense of readiness) (e.g. action, response).
- **COGNITIVE** (Mental) (e.g. thoughts, evaluation, belief)

AFFECTIVE/EVALUATIVE COMPONENT

It is an emotional response (liking/disliking) towards an attitude object. An individual's attitude towards an object cannot be determined by simply identifying one's beliefs about it because emotion works simultaneously with the cognitive process about an attitude object.

EXAMPLE: A child who has been ridiculed in his childhood days may fear interacting with others later.

BEHAVIOURAL COMPONENT

It is a verbal or nonverbal behavioral tendency by an individual and it consists of actions or observable responses that are the result of an attitude object. It involves a person's response (favorable/unfavorable) to do something regarding attitude object.

EXAMPLE: Thomas Alva Edison even after repeated failures was successful in inventing electric bulb.

COGNITIVE COMPONENT

It is an evaluation of the entity that constitutes an individual's opinion (belief/disbelief) about the object. It refers to the thoughts and beliefs an individual has about an attitude object. The cognitive component is the storage section where an individual organizes the information.

EXAMPLE: A person might feel that capital punishment should be abolished or not depending upon the information he/she has about the topic.

COMBINE EXAMPLE - I am thinking that reservation in jobs is against natural justice. This is my thinking (COGNITIVE) and lacks any kind of feeling (AFFECTIVE) but I may be prompted to deliver a lecture about my views on this issue (BEHAVIOUR).

FUNCTION OF ATTITUDE

- **Knowledge function** - It helps people to respond to stable, repetitive and routine things in a way without going through an extensive exercise of assessing it.

EXAMPLE : Like when it rains, we automatically open the umbrella without thinking much. Such attitude helps save time and effort.

- **Adaptive** - It helps people respond in a way that is more socially acceptable and rewarding.

EXAMPLE : A patriarchal minded employee at an MNC may hide his real opinion of working women and in turn admire them just because it is more acceptable behaviour in such MNCs.

- **Self expressive** - It helps people reflect and establish their identity.

EXAMPLE : A person conscious about his professionalism would always go in tidy formal in office and behave in a professional manner.

- **Ego defensive** - It helps people defend their self-esteem and self-worth.

EXAMPLE : A student not able to qualify a competitive exam may resort to excuses like he was never interested in the exam.

Significance of Attitude

- Attitude is significant because it helps us understand the basic framework of society around us e.g. Low sex ratio in Haryana can be attributed the negative attitude of society towards girls.
- Further attitude is significant for it creates avenues of comparison between oneself and their peer group e.g. social acceptance to a new boy in a group is given only after their attitudes towards similar situations is on the same lines.

For example- Geeta is deeply concerned about the issue of legalized abortion and who experiences her attitude on this issue is highly personally significant then she will surely participate in a candle march/protest for such a purpose.

PROFESSIONAL ATTITUDE

Professional attitude is defined as a predisposition, feeling, emotion, or thought that upholds the ideals of a profession and serves as the basis for professional behavior.

For example- Employee interactions and relationships with customers are of **vital importance** to ensure that company **goals and objectives** are met. A **professional workplace attitude** and appearance allow employees to take pride in their work and improve worker performance.

Positive/Negative Aspects Of Professional Attitude

- A professional is responsible and does what should be done (carrying the instruments and tools, for example). A professional helps maintain a safe workplace with a civilized atmosphere.
- The professional skills, abilities, and experience of an individual are all critical components of achieving success – however, the attitude of an individual is just as important as all of these other attributes.
- The more helpful the attitude of a colleague, the more people will want to be around them.
- **POSITIVE** :-Showing compassion for others; responding appropriately to the emotional response of patients and family members; demonstrating respect for others; demonstrating a calm, compassionate, and helpful toward those in need; being supportive and caring.
- **NEGATIVE**:-The professional who remain silent even when pressurized to give bribery .Their professional attitude is questionable because they are giving their interest over community/national interest. Such an attitude comes under the category of ambivalent attitude.

SOCIAL ATTITUDE

A **social attitude** is an acquired tendency to evaluate **social** things in a specific way. It's characterized by positive or negative beliefs, feelings and behaviors towards a particular entity.

Dockery & Bedeian defined **Social attitude** as "a behavior pattern, anticipatory set or tendency, predisposition to specific adjustment or more simply, a conditioned response to **social** stimuli"

Social attitudes may be spoken of as the elements of personality. Personality consists of attitudes organized with reference to a group into a system more or less complete. A social attitude is not the mobilization of the will of the person but the residual tendency that has resulted from such a "mobilization" and the subsequent campaign.

ALLPORT (1935)- Social attitude has 5 aspects

- It is a mental and neural state.
- Readiness to respond.
- Organized.
- Through experience.
- Exerting a directive and/or influence on behavior.

Positive/Negative Aspects Of Social Attitude

People pick social attitudes from personal experiences or observations. Likewise, social roles and norms can dictate formation of attitudes. Social roles determine the behavior an individual occupying a particular position or context in the society is expected to demonstrate, while social norms define the conduct that's acceptable to the society.

However, social attitude does not always lead to specific behavior. **For example**, someone may favour policies of a specific politician but fail to turn out to vote. Attitudes can be dropped the same way they're learned.

EXAMPLE :Religion shapes a person's social attitude,if Hinduism defines Marriage as a union between man and a woman.Therefore ,a devout Hindu may oppose same-sex marriage.

EXAMPLE: Females are more likely to lean towards liberal ideology,so Muslim females supporting Triple Talaq stand of present government.

MORAL ATTITUDE

- Moral attitude is based on moral convictions of what is “Right” and what is “wrong”.
- Moral attitudes are traits that eventually lead to a peaceful world. These are behavioral patterns that strive for a better society, welfare of every individual and peaceful co-existence. They shape the world which we live in. They help in sustaining families. They help in building a nation .They are shaped by conviction and one’s religious beliefs.
- Moral attitude are stronger than moral beliefs. Also moral attitude is personal in nature and hence it may differ at individual as well as society level. Family,society,religion and education play a vital role in framing those moral convictions

EXAMPLE: Any person who does not eat non-vegetarian food on grounds of love for animals may have component of moral attitude.

EXAMPLE: One person may be a patriot for a country while for another country he may be a terrorist

Positive Implications Of Moral Attitude

- Tied up with strong emotions.Hence prevents deviant behaviors among normal folks due to fear of social Ostricization .e.g. child molestation,incest
- Motivates a person towards Altruism,Volunteerism,Social service.

Negative Implications Of Moral Attitude

- Person can use it to justify violence behavior and lunacy and still society will accept it because moral attitude=strong emotions.

EXAMPLE- General Dyer who's responsible for the Jallianwala massacre was considered as a brutal immoral officer by Indians but at the same time he was given a heroic welcome in Britain. It's the religious and social distinctions that gave two totally different moral attitude towards the same action in two distinct societies.

Motivates a person towards riots, genocide and terrorism.

Qualities of Moral Attitudes:

- Reverence
- Faithfulness
- Veracity
- Goodness

POLITICAL ATTITUDE

- Political attitudes are like or dislike of common citizen towards political objects, such as political candidates, political issues, political parties, political institutions and their ideology.
- Political attitudes are the approaches of people to the areas of public life covered by political psychology such as views on nationalism, political conservatism, political liberalism, and political radicalism.
- Political attitudes fall on a range between extremely liberal and extremely conservative.
- These attitudes were seen as including knowledge and skills about the operation of the political system positive and negative judgments about the system. These attitudes decide how people participate, whom they vote for and which political parties they support.
- The factors which make attitudes are family, gender, religion, race, ethnicity and region etc. Political attitude tells us which party someone vote for, what kind of political ideology someone prefer most, which social, economic, cultural, international policy someone prefer etc.

Political attitude on **positive side** can lead to showing zero tolerance toward corruption, pro-poor, welfare for weaker sections, listening to public grievances, but on **negative side** political attitude can take shape of regionalism, communalizing public to polarize them during election.

Political Philosophy is basis of Political party for which it stands. It is like an internal constitution of party. Every political party has healthy and pro-people political ideology but hardly do they follow it because for electoral gains, political attitude of individual politicians comes into action and hence bribery, lobbying, fake protests, walkout, insensitive defamation on other parties and perks politics comes into play.

Political attitude formulation is continuing process and it is achieved through several institutions and agents. Individuals pass through several stages before they completely get socialized. Various agents of political attitude formulation can be categorized into five groups.

- Interpersonal agencies-family and peer groups.
- Organizations-schools, religious institutions and workplaces.
- Mass media-newspaper, TV and radio.
- Specialized political input structures-the legislature, the executive, courts and the bureaucracy.

EXAMPLE

- Poor are more aligned towards communist/socialist ideology. He'll vote for a party promising to get food ,fertilizer and kerosene subsidy e.g. The continuation of Congress system

(Rajni Kothari) till 1970s may be contributed to prolonged existence of poverty in India.

- Rich will align towards capitalism. They'll vote for a party promising to remove wealth tax e.g. CII, FICCI supporting removal of Minimum Alternate Tax.

Relations Of Attitude With Thoughts and Behavior

As an individual's attitude refers to his/her mental view of something/someone, it is expected that such an individual's behavior Should follow logically from his/her attitude. However, an individual's attitude may not always be exhibited through behavior. Likewise one's actual behavior may be contrary to one's attitude towards a particular topic/thing.

FOR EXAMPLE, I strongly believe and support the idea that the use of mass transportation can decrease the rising air pollution in Delhi,but I travel in my own car to office everyday for the purpose of other reasons like convenience.

Example : Take the case of elections, Plenty of people may support a particular candidate, but they may not take the pain to go out and vote for him, despite their names being there on the electoral roll.

Other differences:

1. Attitude gives us knowledge of one's behaviour or thought, helps in predictions regarding a person. If somebody is nature friendly then it is certain that he/she may get offended on nature unfriendly activities like deforestation.
2. Cognitive component of attitude involves person's belief which helps in detecting harmful as well as useful things. It saves us from bad and indulges us in good. Lack of education is the cause of poor living standard, this belief can help in removing bad and indulging in good.
3. Personality development and public relation is dependent on attitude. Self-esteem, socialisation, confidence are connected to it.
4. Strong attitude influences behavior. Gandhi ji has a strong belief in non-violence and it was evident in his behavior.

There is not a direct relation between attitudes and behavior ,but several factors determine the relationship between the attitudes and the behavior of an individual. Psychologists have found few cases where there would be consistency between attitudes and behavior which are as follows:

- When the attitude is strong ,and occupies a central place in the attitude system
- When the person is aware of his/her attitude.
- When there is very little or no external pressure for the person to behave in a particular way. For Example,when there is no group pressure to follow a particular norm.
- When the person's behavior is not being watched or evaluated by others
- When the person thinks that the behavior would have a positive consequence,and therefore ,intends to engage in that behavior.

Example

In 1934, La Piere conducted classic studies to examine the relationship between attitudes and behavior .He conducted the following study during the days when Americans were said to be prejudiced against the Chinese:

He asked a chinese couple to travel across the United States ,and stay in different hotels .Only once during these occasions they were refused service by one of the hotels. Sometimes later,

La Piere sent out questionnaires to managers of hotels and tourist homes in the same areas where the Chinese couple had travelled,asking them if they would give

accommodation to Chinese guests. A very large percentage said that they would not do so. This response showed a negative attitude towards the Chinese, which was inconsistent with the positive behavior that was actually shown towards the travelling Chinese couple. Thus, attitudes may not always predict actual pattern of one's behavior.

Note -Persons with high integrity usually show a direct relation between attitude and behaviour.

Relationship between Attitude and Persuasion

- An attitude is a cognition (form of thought) that is formed through experience and influences our behavior. Both parts of this definition are important for our purposes. The fact that attitudes are formed through experience means that we can, potentially, change them.
- When a persuader gives a message to an auditor (an audience member), that message becomes part of the listener's experience, and it can affect his or her attitudes. The fact that attitudes influence our behavior means that we can use persuasion as a means to achieve our goals -- when the behavior, or actions, or others can help attain those goals.
- Understanding the nature of attitudes can be helpful in understanding how to persuade someone. **For example**, suppose one of your friends likes (has a favorable attitude toward) Egg and you want to change that attitude. Knowing your friend's beliefs and attitudes can help change his or her attitude. For example, they might hold this belief/value pair
- Thus, attitudes are learned from experience and influence our behavior. They are made up of pairs of (relevant) beliefs and values. A person's attitude is a composite of all the relevant belief/value pairs, with the more important ones influencing the attitude more.
- You can change a person's attitude by changing either the belief or the value (but not both), or by creating new belief/value pairs (or by changing the relative importance of belief/value pairs).
- Persuasion helps in reaching decision on social, economic issues/policies to make the process of governing or control easier. The art of persuasion can save many lives when used constructively.
- It can be simply "changing people's attitudes and behavior through the spoken and written words".

EXAMPLE :

- Advertising, selling, negotiating in mass media, peace talks at international level are the example of persuasive aspect of communication.
- To paraphrase Winston Churchill's evaluation of democracy as a form of government, Persuasion is the worst method of social control – except for all the others.

Two influential theories which determine how persuasion can lead to attitude change:

Heuristic-Systematic Model of persuasion: It gives two ways in which persuasive communications can cause attitude change

- People either process the merits of the arguments, known as systematic processing, or
- People use mental shortcuts (heuristics) such as “Experts are always right”, known as heuristic processing.

Elaboration Likelihood Model: Two ways by which persuasive communications can cause attitude change

- The central route occurs when people are motivated and have the ability to pay attention to the arguments in the communication
- The peripheral routes occurs when people do not pay attention to the arguments but are instead swayed by surface characteristics (e.g.-who gave the speech) .

FOUNDATIONAL VALUES FOR CIVIL SERVICES

“Humankind seems to have an enormous capacity for savagery, for brutality, for lack of empathy, for lack of compassion.”

—Annie Lennox

INTEGRITY

Word Integrity is derived from Latin adjectives “integratias” meaning ‘Whole or Completes’. Thus Integrity is an inner sense of “wholeness” deriving from the qualities

such as honesty and consistency of character. Integrity means to be honest and consistent in thought, speech and action.

Ethics of integrity lead to development of moral character with self- responsibility and moral autonomy. It relies on internal, positive, proactive and voluntary efforts of public servants rather than on external commands and penalties.

Types of Integrity

1. Intellectual integrity: It requires being willing to stand up for your best judgment of truth by willing to act in accordance with the judgment when the need arises. It requires caring for truth for its own sake. When we fail to stand up for our best judgment of truth we are said to lack intellectual integrity. It is characterized by openness and fairness. It requires one to overcome self-deception and temptation offered by commercialism.

2. Personal Integrity: It consists of organizing one's desires, commitments, volitions, values and actions in such a way that there is no conflict between them. When a person possesses a personal integrity then various aspects of his self are fully integrated.

It requires that the person subscribes to some consistent set of principles and commitments in the face of temptations and challenges and uphold these principles or commitments for what individuals take to be the right reasons.

3. Moral Integrity: It requires an unconditional and unwavering commitment to some or the other moral principles. We can't have moral integrity without having personal integrity

EXAMPLE

- **S.R. Sankaran** (1934-2010) was an Indian civil servant, social worker and the chief secretary of Tripura, known for his contributions for the enforcement of Abolition of Bonded Labour Act of 1976 which abolished bonded labour in India. During his tenure, he had to face pressure from different groups but he showed great Integrity and did not compromise.
- **Abraham Lincoln** was a man of high Integrity and adhered to his principles even when he faced opposition. He said "I am not bound to win, but I am bound to be true. I am not bound to succeed, but I am bound to live by the light that I have I must stand with anybody that stands right, and stand with him while he is right, and part with him when he goes wrong".

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- **Satyendra Dubey** the man who fought against government all alone. He was an IES officer; he was the project Director in the NHAI. When he joined he saw many irregularities in the financial department and these were some serious irregularities. He got the contractor of the project to suspend his three engineers. He exposed this scam. He even made the contractor to rebuild the Six Kilometer road. This scam getting reviled and roads getting rebuild were proving to be a huge loss for the Road Contract Mafia. But unfortunately, he lost his life fighting against this scam.

2nd ARC on Integrity

Integrity is much more than financial honesty. Public office should be treated as a trust. A civil servant with integrity must put public service above personal interests.

He/She must not:

- Misuse official positions by using information acquired in the course of his duties.
- Accept gifts or hospitality which might compromise his judgements.
- Disclose information without the authority.

He/She must:

- Fulfill his duties and obligations responsibly
- Act in a way that is professional and deserves and retain public confidence
- Make sure public money and resources are used efficiently.
- Be transparent and open in his public dealings.
- Comply with law and uphold the administrative justice.

Nolan Committee On Integrity: Holders of public office should not place themselves under any financial or other obligation to outside individuals or organizations that might influence them in the performance of their official duties.

IMPARTIALITY

It means equal treatment .A civil servant must carry his responsibilities in a way that is fair, just and equitable and reflects the civil service commitment to equality and diversity.

He must not act in a way that unjustifiably favors or discriminates against particular individuals or interests. All decisions must be on the basis of merit alone. In practice impartiality requires civil servant refrain from opinions, prejudices etc.

Impartiality empowers the administrator to fill the gaps of trust deficit between the subjects and the Government. Impartiality provides lawfulness to the behavior of administrator and makes it more effective.

EXAMPLE

- The recent move of the government not to ban websites having porn but at the same time ensuring that child pornography sites are blocked specifies impartiality towards general content and partiality towards child pornography content for greater good.
- If a high cast officer receives complain from a Dalit regarding atrocities against him and if he sides with the perpetrators of the crime, then the whole system would seem like highly partial and corrupt.
- The Public servants are to be responsive to the needs and direction of their political masters, who have been democratically elected. The duty of loyalty many often becomes contradictory to a public servant's obligation to act impartially.
- The role played by the central govt. of India in the interstate water disputes between Karnataka vs Tamil Nadu Megathathu dam issue and Mullaiperiyar issues, Krishna water disputes

2nd ARC on Impartiality

The 2nd ARC is of the view that the political neutrality and impartiality of the civil service needs to be preserved and the onus for this lies equally on the political executive and civil servants. The commission in its report on "Ethics in Governance" while examining the ethical framework for Ministers has recommended that a code of Ethics for Ministers should inter-alia include the following "Ministers must uphold the political impartiality of the civil service and not ask civil servants to act in any way which would conflict with the duties and responsibilities of the civil servants".

NOLAN Report:- Civil servants in carrying out their official work including functions like procurement, recruitment, delivery of services etc. should make a decision based on merit.

NON PARTISANSHIP

Non-Partisanship is an essential value in public service. Non-partisanship infers that the officer is to do his task without any fear of, or favor to any political party. The values of the administrator will flow from the constitution not from the philosophy of any political party.

Non-partisanship is the process of not involving any political party even if the person has strong faith in any political thought. The principle of non-partisanship is derived from politics administration dichotomy.

Partisanship

Partisanship is the act of supporting a party, person or cause. Partisanship refers in general to actions supporting or opposing political parties or biases.

Although the primary concern for the public service is "political partisanship", other types of partisanship should not be dismissed (e.g. support for an interest group or cause that is not attached to a particular political party).

Significance of Non partisanship

- It is important for harmonious relationship between permanent executive and political executive
- Public confidence in nonpolitical character of civil service.
- Confidence of ministers belonging to any political party in the loyalty of civil servants.
- High morale of civil servants.

EXAMPLE

- **T.N. Seshan** is a retired 1955 batch IAS officer of Tamil Nadu cadre, best remembered as the man who cleaned up elections in India. He was the 10th EC of India. While performing his duty as CEC during elections he did not favor any particular political party and took all decisions according to the law showed his great non-partisanship during election.
- **K.R. Narayanan** dissolved Lok Sabha twice. He was the first to establish that a person could be appointed prime minister only if he convinced the president, through letters of support, that he could secure the confidence of the House. Vajpayee was the beneficiary of this decision. The president underscored his non-partisan independence by declining the United Front Prime Minister's

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recommendation to dismiss the BJP government of UP, and later by declining the BJP prime minister's recommendation to dismiss the Rabri government of Bihar.

- As an IAS officer, I will maintain contact with industrialists, builders, NGOs, politicians etc. only at the professional level via meetings, conferences etc. and not at the personal level.

OBJECTIVITY

- Objectivity is basing your advice and decisions on rigorous analysis of the evidence. The broader meaning of the term refers to the ability in any context to judge fairly, without bias or external influence; this sometimes used synonymously with neutrality.
- Objectivity is the quality of acting based on observable things, rather than on things like perception, emotion, Prejudice.
- The principle of objectivity implies that the decisions and actions should be based on observable phenomena and should not be influenced by emotions, biases or personal prejudices.

Significance of objectivity for a public servant:

- Civil servants take decisions on the merit of the case and take account of expert and Professional advice.
- Provide information and advice including the advice to ministers on the basis of evidence and accurately present opinions and facts.
- Decisions based on the merits and facts lead to an impartial decision making.
- This would ensure efficient use of resources and enhance the transparency in public domain.

Public servant must:

- Provide information and advice, including advice to ministers on the basis of the evidence and accurately present the options and facts.
- Take decision on the merits of the case.
- Take due account of expert and professional advice.

He/she must not:

- Ignore inconvenient facts or relevant considerations when providing advice or making decisions.

- Frustrate the implementation of policies once decisions are taken by declining to take or abstaining from, action which flows from those decisions.

EXAMPLE

- Amit stole money from a corrupt businessman and distributed it among the poor in slums. His motive is noble; to help the poor, but his means is wrong. The police thus needs to charge him with theft by being objective. Motive is irrelevant here.
- A contract for mining is under pending from high profile person having some political back up. But the area to be mined is vulnerable to landslides. In such a situation it is the objectivity value which will guide civil servant to take decision which is beneficial for large number of stakeholders.
- If objectives and time-frames were not set in missions like polio eradication, their monitoring would have been impossible. Objectivity is the driving force behind the ADP [aspirational district program] too.
- It helps in taking right decisions when confounded with ethical issues. **Ex:** rescuing vulnerable like women children aged etc over others during disasters.

Objectivity is considered one of the important values in public administration both by Nolan and 2nd ARC report:

- To avoid emotions cloud our judgement: **For e.g.** the influence of family and friends while signing a contract or give favors to our kith and kin –leads to corruption, nepotism.
- It helps in taking right decisions when confounded with ethical issues. **For e.g.** Rescuing vulnerable people at the time of disaster.
- Building consensus among stakeholders like citizens and civil society on issues. **For e.g.** Convincing slum dwellers near chemical industries to relocate based on threat to their lives.
- Helps in inculcating honesty and impartiality among personnel. **For e.g.** To deliver services and maintain equity and inclusiveness
- Helps in maintaining situational awareness while discharging duties. **For e.g.** during communal riots and maintaining law and order.

Dedication to civil service

- Dedication is the eminence of people to be devoted or loyal to a duty or purpose, thought or action. Dedication is vital personality trait of an individual. In

organizational framework, faithful employees work towards achieving the organizational goals.

- Dedication will carry person through a lack of motivation. It is his ability to continue acting when motivation is lacking. Dedication will drive to certain task rapidly. There are some occupations in which employees dedicate their lives to public service, even sacrificing their personal life and comfort.
- There are some professions in which personnel dedicate their lives to public service even at the cost of their personal life, fun and comfort. Where someone risks his life and comfort for anything other than physiological, safety, love, esteem and self-actualization needs, it goes outside the explanation of Maslow's hierarchy of needs.

An officer who is genuinely dedicated to public service:

- Is willing to go beyond the call of duty.
- Places public welfare above his own interest or even safety.
- Seeks neither rewards nor recognition for his efforts.

Bhagwad Gita expounds the concept of **Karamanyev adhikarste ma phaleshu kadachana**. “**We should perform our duties diligently and piously, but without expectation of what the results will be.**”

EXAMPLE

- **R Gopal Krishnanan** IAS MP cadre, a former officers in PMO's and a joint secretary. He brought to his work the commitment of a social activist, the discipline of a civil servant and the creativity of a wordsmith. The lives of millions of Indians have improved in the past decade because of the good work and professional creativity and commitment of an officer. The most important such concept developed by Gopal was “**Bharat Nirman**”.
- In the remote areas of Manipur, the two villages of Tusem and Tamenglong were inaccessible with no road connectivity and the locals had to either walk for hours, or swim across the river. **IAS officer Armstrong Pame** decided to get the road built, he wrote to the government of Manipur, but was refused funds. This, however, did not deter his plan and Armstrong began gathering support through social media. He collected Rs 40 lakh for the construction of the 100 km road.
- **Dr. A P J Abdul Kalam**: He said “you see, God helps only people who work hard. That principle is very much clear”. Dr. Kalam's life is an epitome of work ethics and dedication towards his own work.

- **T.N. Seshan** showed utmost dedication and commitment to his work and won the Ramon Magsaysay Award for government service in 1996.

EMPATHY

- It involves, first, seeing someone else's situation from his/her perspective and second sharing that person's emotions including, if any, his distress.
- Empathy is the act of putting yourself in someone else's shoes. It occurs when you are truly trying to understand or experience someone else's emotions, as if they were your own.
- **Barker (2003)** defined empathy as "the act of perceiving, understanding, experiencing, and responding to the emotional state and ideas of another person".

Three ways of looking at empathy:

- **Affective empathy**- the ability to share the emotions of others.
- **Cognitive empathy**- the ability to understand the emotions of others.
- **Emotional regulation**- the ability to regulate one's emotions

Empathy is an important factor in public services, because of the following reasons:

- **For Policymaking** – policy will be proper and flawless when it will be prepared to understand the ground reality.
- **For Smooth execution of government programs** - programs can be reached to every citizen of the country when public servant will be able to persuade people. Public servants can make understand people when they talk on understanding public feelings. For example implementations of open defecation free area and demonetization.
- For understanding the lacunas in existing policies and Programs and for making them better.

Empathy is necessary to give better service. Therefore it has to be increased among civil servants through the following ways.

- There is a great saying that to develop empathy, walk a mile in their shoes. That's why fieldwork has to be enhanced rather than working inside the office room alone.

- Moral education has to be given at primary level through not just narration but reflecting values from the teacher's life. So quality teachers have to be hired.
- The family system is the source for passing values in the children inherently. In this respect, family culture has to be strengthened which is diluting as increasing the culture of working parents.
- Empathy cannot sprout in a day in every human in single listening about it. It can form someday when it will be provided seldom through conducting value-based training camps and direct display or contact of social evils & its impacts on innocents.

Significance of Empathy

- Empathy is important in civil services because they have to be concerned about the problems of the people for they are intended to provide service. Civil servants are expected to serve the common man, particularly poor and vulnerable, in the context of empathy is of paramount importance. Empathy creates a sense of belonging
- Empathy brings a sense of connectedness to others who are affected by public policy decisions. Empathy is needed to see things from multiple perspectives. They have to imagine how others think and feel in the situation and how they view the world in general.
- Empathy is an important tool of communication.

EXAMPLE

- For instance, **Armstrong Pane, IAS** officer built a 100km road in Manipur without government support to help the residents access health facilities is an exemplary example of empathy.
- Tribes have certain customary values which are contradictory to the rules of government. Here empathy in public servants would act as savior for tribal population
- Consider the issue of child labour. On seeing a child waiter in a restaurant if a person is just feeling sad, then he is sympathetic. But if he also connects himself or own children with that child or memorizes any of his life experience, then he is empathetic

TOLERANCE

- It refers to fair, objective, and permissive attitude toward those whose opinions, practices, race, religion, nationality etc. differ from one's own. In simple words, it

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is the act or capacity of enduring the diversity of views and practices in your environment.

- Tolerance is based on the idea of how to live together in peace and harmony with one another despite dissenting views. It is fostered by knowledge, openness, communication, and freedom of thought, conscience and belief. Tolerance is harmony in difference.
- According to **UNESCO's** political context tolerance is respect, acceptance and appreciation of the rich diversity of our World's cultures, form of expression and ways of being Human. Being a diverse country in all dimensions religiously, culturally, linguistically and racially tolerance is an important aspect in our life.

Tolerance At Different Stages:

- **Individual Level**:- Tolerance teaches one to respect others and not impose our will on others. Beef may be religiously prescribed for the majority but it may be part of someone's culture. It helps us to broaden our perspective and thinking.
- **Societal Level**:- Promotes peace. Tolerance towards various linguistic groups has cemented India's unity whereas its absence led to division of Pakistan and civil war in Sri Lanka.
- **Governmental Level**:- Helps increase its legitimacy and inspire confidence even among the dissidents. The accommodative policies of Nehru were largely responsible for many Mizo insurgents to take part in elections.
- **International Relations**:- Helps maintain peace and security. India's restraint towards Pakistan despite repeated attacks (26/11, Pathankot, Gurdaspur) has defeated the adversary's aim, promoted peace and strengthened India's standing.

Significance Of Tolerance

- It upholds human rights, pluralism, democracy and the rule of law.
- It involves the rejection of dogmatism and absolutism and affirms standard set out in international human rights statutes.
- It doesn't mean tolerance to injustice or the abandonment or weakening of one's convictions.
- It means acceptance of diversity of appearance, speech, behavior and values, have the right to live in peace and to be as they are.
- It also means that one's view is not imposed on others.

The value of harmony and peace is inherent in the behavior of Tolerance. Tolerance leads to harmony and peace in pluralistic society. It upholds human rights and rule of

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law. The other values of impartiality and objectivity require tolerance towards society as a precondition

EXAMPLE

- Mahatma Gandhi preached tolerance all his life. He welcomed different ideas, cultures. But he was against blindly following them. He said “I do not want my house to be walled in on all sides and my windows to be stuffed. I want the cultures of all the lands to be blown about my house as freely as possible. But I refuse to be blown off my feet by any”. Gandhi suggested “**SARVA DHARMA SAMBHAV**”. According to him, all religions are true and man cannot live without religion so he recommends attitude of respect and tolerance towards all religions.
- **Swami Vivekananda** in his speech in Chicago in 1893, he stated that “I am proud to belong to a religion which has taught the world both tolerance and universal acceptance”. This teaching of Vivekananda is very important for the multi-cultural, multi-religious and multi-linguistic nation like India.
- If there is some practice which is derogatory to the fundamental rights of any person like women rights in religious matters, then one must tolerate it. Rather, one must fight against it.

COMPASSION

Our task must be to free ourselves from this prison by widening our circle of compassion to embrace all living creatures and the whole of nature in its beauty.”

--Albert Einstein.

The etymology of “compassion” is Latin meaning “co-suffering”. Compassion is the response to the suffering of others that motivates a desire to help. Compassion motivates people to go out of their way to help other. Compassion is often regarded as having an emotional aspect to it, though when based on cerebral notions such as fairness, justice and interdependence.

Significance Of Compassion For Civil Servants

As a civil servant, one of the most important attributes is to possess the intention to do good things to the people. In fact, doing good things is at the heart of good character.

For goodness of character, an individual should shift his focus from self-interest and ponder upon the benefits pertaining to the society.

Compassion help civil servants to:

- Understand the needs of marginalized and disadvantaged.
- Be responsive to the needs of citizens, particularly those in distress.

Compassion is a deeper level of empathy, demonstrating an actual desire to help the suffering person. It is a unique feeling of sympathy for the suffering of others that involves emotions and empathy towards others, a sense of understanding, and the drive to protect.

A man without compassion would fail to understand others as good as one with it, compassion is useful because it helps us predict behavior of others and it helps us shift our point of view from ourselves to others.

EXAMPLE

- **Nelson Mandela** said “A good head and a good heart are always a formidable combination”. He devoted all his life for others. His relentless struggle against Apartheid was for the people of South Africa, not for himself. Even after retirement he focused on combating poverty and HIV/AIDS through the charitable Nelson Mandela Foundation.
- **B.D. Sharma** had joined IAS in 1956. He was compassionate towards the socially disadvantaged and marginalized people. He fought for the tribal rights during and after his tenure.
- **S. R. Sankaran** (1934-2010) Was an Indian Civil Servant, social worker and chief secretary of the state of Tripura. He was compassionate towards the socially disadvantaged and marginalized people. He was widely known as “People’s IAS officers” for the proactive role he played in formulating pro-poor policies. He contributed to the enforcement of Abolition of Bonded Labour Act of 1976. He was also a mentor to the Safai Karamchari.

SELFLESSNESS

Quality of unselfish concern for the welfare of others. It is a traditional virtue in many cultures and a core aspect of various religious traditions and secular world views,

though the concept of 'others' toward whom concern should be directed can vary among cultures and religions.

Selflessness signifies total indifference to body. It seems that Gandhi's aim is to strengthen the resolve of the freedom fighters, and to encourage them to be prepared to undergo bodily pain.

NOLAN Report: Holders of public office should act solely in terms of public interest. They should not do so in order to gain financial or other benefits for themselves, their family or their friends.

2nd ARC Recommendations:

'Public Service values' towards which all public servants should aspire, should be defined and made applicable to all tiers of government and Parastatal organizations. Any transgression of the values should be treated as misconduct, inviting punishment.

EXAMPLE

- **Vinoba Bhave** once said that the goal of human beings is selfless service of humanity rather than indulgence. Vinoba observed the life of the average Indian living in a village and worked selflessly for others.
- **Tukaram Omble** of Maharashtra police tackled Kasab, one of the terrorists of Mumbai attack so that he couldn't attack his fellow servicemen. Thus showing exemplary courage and the highest degree of selflessness by giving away his life for the cause of his nation.
- **Gita** also in one of its Shloka- **karmanye vadhikaraste ma phaleshu kadachana** reiterates the principle of selflessness which means one should only focus on our actions and should not worry about the result.
- **S. R. Sankaran** for his great work, he never expected any special recognition for himself. The government of India awarded him the third highest civilian award, Padma Bhushan, in 2005, for his contribution to society but he declined the honor.
- **B. D. Sharma** selflessly worked for the betterment of people always kept himself away from the limelight.

ACCOUNTABILITY

The notion of accountability is an amorphous concept that is difficult to define in precise terms. However, broadly speaking, accountability exists when there is a relationship where an individual or body, and the performance of tasks or functions by that individual or body, are subject to another's oversight, direction or request that they provide information or justification for their actions.

Therefore, the concept of accountability involves three distinct stages:

ANSWERABILITY, ENFORCEMENT and RESPONSIVENESS.

- **Answerability** refers to the obligation of the government, its agencies and public officials to provide information about their decisions and actions and to justify them to the public and those institutions of accountability tasked with providing oversight.
- **Enforcement** suggests that the public or the institution responsible for accountability can sanction the offending party or remedy the contravening behavior. As such, different institutions of accountability might be responsible for either or both of these stages.
- **Responsiveness:** It is the extent to which an action was taken for a genuine public need or only for administrative convenience.

The basic features of accountability are:

- It is objective in nature- this makes it easy to identify violations and impose punishments.
- It travels downwards, implying that it depends upon the presence of a Superior – Subordinate relationship.
- It is enforced by external agencies, individually and collectively.

The advantages of accountability are:

- It ensures standardization and consistency in administrative actions.
- It prevents misuse of discretion and authority.
- It promotes compliance and obedience.
- It safeguards citizens from arbitrary administrative actions

Types of Accountability

- **Political Accountability:** Political Accountability refers to the responsibility or obligation of government officials to act in the best interests of society or face consequences. Public officials should be held responsible for their actions.

Political Accountability usually manifests itself in the concept of individual ministerial responsibility which is the cornerstone of the notion of responsible government as mentioned under article 74 of Indian Constitution.

- **Administrative Accountability:** Administrative Accountability is a relationship that links inferior administrative positions with superior political or administrative ones. Full subjection of public officials and administrative units to a wide set of constitutional, legal and administrative rules and procedures that governs tightly their performance.

Evaluation based on the fulfilment by public officials and administrative units of the provisions and procedures set by formal rules and regulations, and also on the correct use of public resources.

- **Professional Accountability:** Professional Accountability is characterized by the existence of a set of norms and practices of a technical or professional nature that govern the behavior and performance of members of a certain profession.

These norms and practices, as long as their respective profession is integrated in the organic structure of public administration, become also part of the set of rules, regulations, and principles that govern the operation of public administration in those areas where the profession is exercised.

Members of the profession thus are subjected to this normative test, but they move with full autonomy when performing professional activities, acting only according to their own criteria and professional knowledge.

- **Democratic Accountability:** Democratic Accountability entails the existence of a direct relationship between public administration and the society a relationship in which the society is not only a passive object of the administrative action, but rather it adopts an active role, as much in relation to the adoption of administrative acts, and in relation to the request of accountability of the public administration.

EXAMPLE

- For instance a clear example of accountability shown by public servant is when **Vikram Sarabai** accepted the failure of ISRO first mission without actually putting it on the mission head (**APJ Abdul Kalam**). It also includes accountability to public funds, accountability to rule of law etc.
- Accountability of the executive arm of the government to parliament and to the citizens of the country is of course the fundamental feature of a democracy.

Nolan Report on Accountability: Holders of public office are accountable for their decisions and actions to the public and must submit themselves to whatever scrutiny is appropriate to their office.

2nd ARC recommends following for ensuring accountability among public servants:

- A system of two intensive reviews one on completion of 14 years of service, and another on completion of 20 years of service should be established for all government servants.
- The first review at 14 years would primarily serve the purpose of intimating to the public servant about his/her strengths and shortcomings for his/her future advancement. The 2nd review at 20 years would mainly serve to assess the fitness of the officer for his/her further continuation in government service. The detailed modalities of this assessment system would need to be worked out by the government.
- The services of public servants, who are found to be unfit after the second review at 20 years, should be discontinued. A provision regarding this should be made in the proposed civil services law. Besides, for new appointments it should be expressly provided that the period of employment shall be for 20 years. Further continuance in government service would depend upon the outcome of the intensive performance reviews.

OPENNESS

- It is defined as sharing of information and transparent decision making. Freedom to ask questions and offer different views. Attitude of ready accessibility (especially about one's actions or purposes). Openness includes characteristics such as imagination and insight.

- Openness to Experience (versus closed-mindedness) describes the breadth, depth, originality, and complexity of an individual's mental and experiential life.

Nolan Report on Openness: Holders of public office should be as open as possible about all the decisions and actions they take. They should give reasons for their decisions and restrict information only when the wider public interest clearly demands.

EXAMPLE

- RTI open Access to information empowers the poor and the weaker sections of society to demand and get information about public policies and actions, thereby leading to their welfare.
- Openness in the exercise of public power - Executive, Legislative or Judiciary - is a culture, which needs to be nurtured, with privacy and confidentiality being an exception.
- CIC has significantly increased the openness and transparency of the government.
- Openness of Cadbury companies in disclosing of information, within the limits set by their competitive position, is "the basis for the confidence which needs to exist between business and all those who have a stake in its success."

HONESTY

- Honesty is the quality of telling the truth. The trait of honesty has been prized for centuries, and Shakespeare once wrote, "Honesty is the best policy. If I lose my honor, I lose myself." Honesty is being truthful and abiding in all spheres of life and communicating without abstraction and distortion.
- In the modern world, there are many situations in which people handle money belonging to organizations and other individuals. Individuals who perform such functions accountants, custodians of cash, wealth managers, and guardians of minors, trustees of charitable bodies, bankers and treasury officers have to be scrupulously honest. They have to justify their positions in the offices of trust.
- Honesty in public administration implies that civil servants should discharge their duties in a bonafide manner without giving into monetary temptations or inducements. They should follow the adage that honesty is the best policy.
- Honesty is integral also to business transactions. Business men should avoid all forms of deception, cheating and fraud. They should also avoid sharp business practices. Their financial transactions have to be clean and above board. In fact,

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the present emphasis on corporate governance is designed to promote clean business practices

Nolan Report on Honesty: Holders of public office have a duty to declare any private interests relating to their public duties and to take steps to resolve any conflicts arising in a way that protects the public interest.

A civil servant must:

- Set out the facts and relevant issues truthfully, and correct any errors as soon as possible.
- Use resources only for authorized public purposes for which they are provided.

He/She must not:

- deceive or knowingly mislead ministers, parliament or others
- be influenced by improper pressures from others or the prospect of personal gain.

EXAMPLE

- Don't take bribe is an expected behavior. If someone actually never takes it then it is an act of honesty. People respect him for his honesty to his work.
- **SC in Jain Hawala Case** had annulled the then executive direction of the Government. To nullify this Govt. brought in a statutory requirement in the DSPA to safeguard honest civil servants.
- An officer is honest when he commits a mistake and admits it in front of his superiors.
- An honest and corruption free regime would lead to a much higher rate of growth of our GDP, bring an overall improvement in the economy and lead to greater transparency in government actions in serving its people. All this, in turn, will lead to greater empowerment of the people – the core need of a vibrant democracy.

LEADERSHIP

- This principle is the articulation of the same idea as I referred to in the context of Mahatma Gandhi's Experiments with Truth. A true leader will always lead by example. If a leader is honest, sincere and committed to the task assigned to

him, the vibes created percolate down the hierarchy cleansing the system that he controls.

- By bringing transparency in the system that he controls. By bringing transparency in the system and standing against corruption.
- The leadership role of administrators is important not only within administrative ranks but also towards the public by virtue of being custodians and symbols of public trust.
- When society faces major changes in its value systems or social turmoil, administrators are expected to provide clarity and direction through their words and actions.
- The hallmark of a good leader is the capacity to influence others to follow willingly. Therefore, leadership should be based on not just professional competence and authority but also on the values reflected through their personality and actions. This makes it essential for good leader to have congruence between his personal and professional values.

Nolan Report on Leadership: Holders of public office should promote and support the principles of public life by leadership and example.

EXAMPLE

- **Lal Bahadur Shastri** used to fast every Monday to save grains for poor people of the country and he gave a call for the nation to follow it. Thus exhibiting a true example of how leaders should lead from the front.
- **Martin Luther King Jr.** effectively harnessed student organizations, church groups, and a considerable network of politicians and celebrities sympathetic to the civil rights cause and was able to transform a sense of justice into an actual movement.
- **Abraham Lincoln** was a man with great vision and determination which made him a great leader. Lincoln led the United States through the **American Civil War** its bloodiest war and perhaps its greatest moral, constitutional and political crisis. In doing so, he preserved the union, abolished slavery, strengthened the federal government and modernized the economy.
- As per the **Alagh committee report 2001**, the scheme of examination for entry into civil services should do away with optional papers & rather include test to judge aptitude & leadership qualities of candidates.

CONFIDENTIALITY

- Confidentiality refers to a state when it is intended or expected from someone to keep the information secret.
- Confidentiality is that practice which helps **to keep secret** all information deemed desirable to keep secret. The maintenance of secrecy refers to the unrevealing of any data concerning the company's business or technical processes that are not already in public knowledge.
- Every company has some knowledge and can identify the individuals and groups that might have access to a particular set of information. The members of such groups share the responsibility of maintaining confidentiality.
- When the word **confidential** is added to any information, it means that it should not be shared with one and all. It is mostly a trade secret. Maintaining confidentiality and avoiding harmful conflicts of interest are especially important aspects of teamwork and trustworthiness.

EXAMPLE

- One manufacturing expert along with his colleagues as well as with some secret documents left General Motors and joined Volkswagen. This violation of trade secret, lead the Volkswagen to pay huge compensation to GM in cash and compulsion to buy parts from GM for seven subsequent years.
- Some types of research, such as mapping insider trading or illegal immigration, may be of interest to business or to government policy. If researchers are served with a court order to reveal their source, when is it ethically correct to breach confidentiality for such reasons.
- When people change jobs (employers), the former employee will reveal this information to the new employer or sell it to a competitor of the former employer. The integrity of the employee, even upon switching the employer demands that he maintains confidentiality and does not to divulge the information. The professional integrity of engineers is more valuable than the loyalty to the current employer.

PRUDENCE

- Knowing how to avoid embarrassment or distress. Courage in the pursuit of a foolish policy can lead to a catastrophe. For these reasons, prudence is the charioteer of the virtues.
- Prudence refers to the ability to discern the most suitable, politics, or profitable course of action in actual conduct; It also signifies practical wisdom and discretion.
- Civil service involves decision-making in public sphere. Civil servants are supposed to be men of practical affairs. They are in fairly regular contact with people. Civil servants have to deal with matters anonymously and discreetly. For all these reasons, prudence is an eminently desirable quality in civil servant.
- It is one of the four cardinal virtues derived primarily from Plato's proposal which define Prudence as wisdom, the ability to judge between actions with regard to appropriate actions at a given time.
- The dictionary meaning of prudence is discretion, cautiousness, care, forethought or good sense prudent individuals avoid rashness and recklessness and tend to be wary of needless risk taking. Prudence literally means “discretion in practical affairs”.
- Prudence is called the charioteer of the other virtues because it guides and sets the rules and reason for the other virtues. Prudence is the footprint of Wisdom.

EXAMPLE

- Civil service involves decision-making in public sphere. Civil servants are supposed to be men of practical affairs. They are in fairly regular contact with people. Civil servants have to deal with matters anonymously and discreetly. For all these reasons, prudence is an eminently desirable quality in civil servants.
- Early Christianity called for purity of heart and rejected prudence, fear and desire for afterlife in paradise as grounds for piety or virtue. Mere calculating prudence or a desire for social conformity should not be the basis of morality. A prudent individual may simply observe the external forms of religion without putting his heart into it.
- In the theory of just war, the government of a nation must weigh whether the harms they suffer are more than the harms that would be produced by their going to war against another nation that is harming them; the decision whether to go to war is therefore a prudential judgment.

Emotional Intelligence

"What really matters for success, character, happiness and lifelong achievements is a definite set of emotional skills your EQ not just purely cognitive abilities that are measured by conventional IQ tests."

--Daniel Goleman

Definition and Basic Explanation

The term was coined by two researchers – **Peter Salovey and John Mayer** in 1990 but got popular in 1996 from Dan Goleman's book 'Emotional Intelligence: Why It Can Matter More Than IQ'.

- **Emotional intelligence** refers to 'the ability to identify one's own emotions and those of others, harness and apply them to tasks, and to regulate and manage them'.
- **Emotional Quotient (EQ)** is a measure of one's EI i.e. through a standardized test, one's awareness of emotions in relation to self and others is known.

"Emotional Intelligence is a way; of recognizing, understanding, and choosing how we think, feel, and act. It shapes our interactions with others and our understanding of ourselves.

It defines how and what we learn; it allows us to set priorities; it determines the majority of our daily actions. Research suggests it is responsible for as much as 80% of the "success" in our lives."

Mayer & Salovey: "People high in emotional intelligence are expected to progress more quickly through the abilities designated and to master more of them."

John D. Mayer: "An emotion occurs when there are certain biological, certain experiential, and certain cognitive states which all occur simultaneously."

Elements of EI (as given by Daniel Goleman)

Self-Awareness: It is the skill of being aware of and understanding one's emotions as they occur and as they evolve.

Self-Regulation: It is about controlling one's emotions i.e. instead of reacting quickly; one can reign in one's emotions and thus will think before responding.

Internal Motivation: It includes one's personal drive to improve and achieve commitment to one's goals, initiative, or readiness to act on opportunities, and optimism and resilience.

Empathy: It is an awareness of the needs and feelings of others both individually and in groups, and being able to see things from the point of view of others.

Social Skills: It is applying empathy and balancing the wants and requirements of others with one's. It includes building good rapport with others.

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EXAMPLE

- For example when seeing a angry mob protesting for justice for victim of a rape he/she should be able to get hold of public emotions and should be able to pacify them with his/her words. This requires good soft skills.
- Same event can give multiple emotions at the same time. **For e.g.** For a father: Happiness (of daughter marrying) + Sadness (of daughter leaving because of marriage).
- If we could not have emotions, we could not make rapid decisions concerning whether to attack, defend, flee, care for others, reject food, or approach something useful, all of which were functionally adaptive in our evolutionary history and helped us to survive.
- The emotionally intelligent person can capitalize fully upon his or others changing moods in order to best fit the task at hand. **For E.g.** If my boss is in a good mood then I can go and ask him for leave rather than when he is in a bad mood.
- Civil servants personal values and organizational values can be in conflict. He may not agree with decisions of superior. In such cases, conflict can be resolved by using EI.

Importance of EI in Personal Life

“If your emotional abilities aren't in and, if you don't have self-awareness, if you are not able to manage your distressing emotions, if you can't have empathy and

have effective relationships, then no matter how smart you are, you are not going to get very far”

--Daniel Goleman

- Emotional Intelligence can help you navigate the social complexities of the workplace, lead and motivate others, and excel in your career.
- Individual with high EI are motivated, they can easily adapt to work environment. This leads to higher job satisfaction.
- **Personal Growth:** Research shows that emotionally intelligent people achieve better results at work, school and personal life. They are flexible enough to accept positive changes in their life for personal growth which can be achieved by developing EI competencies.
- **Optimism:** It helps to control our negative emotions so that we can maintain a positive attitude even in adverse situations.
- **Decision Making:** Many researchers agree that the key to good decision making is the combination of both thinking and feeling in one's decisions. Positive mood and emotions help for better decision making.
- **Conflict Resolution:** Emotionally intelligent person can handle difficult individuals, groups of people, or tense situations with diplomacy and tact. He can find the best solution to a given problem or disagreement.
- **Mental Health:** It helps us to manage our emotions which mean we can also manage stress. It keeps us protected from depression and anxiety. One can handle pressure with ease.

Importance of EI in Professional Life, Civil Services

- **For Targeting Policies better:** Bureaucrats need to know emotions, moods and drives of persons at whom public policy is targeted for better acquaintance with the nature of problems in society and their possible solutions.
- **For motivating subordinates:** EI helps a person in comprehending emotions of others, thus an emotionally intelligent civil servant can motivate his/her subordinates towards a particular goal.
- **Stress Management:** EI enables one to manage emotions in anxiety-provoking situations and thus helps one in maintaining one's physical and mental well being.

- **For change:** An Emotionally Intelligent person is more likely to try new things, take risks and face new challenges without fear. This will help in finding innovative solutions to different problems.
- **For Decision making:** EI helps in recognizing such emotions that are unrelated to any specific problem and not allowing them to be influential to the final result.
- **For Better Communication:** An Emotionally Intelligent civil servant will be able to communicate policies better. Also, the person will be able to foster a healthy relationship with subordinates.
- **For maintaining balance in life:** EI helps a civil servant in managing his/her personal life as well as professional life.
- **On personal front,** EI makes one more flexible, empathetic and clear in expression.
- He must be able to manage his own body language as per the protocol and requirements of the situation. **For example,** he cannot show his over enthusiasm overtly as that could put him on the radar of suspicion and would not go well with his career.
- A bureaucrat has to deal with public and real-life situations. In a day, there will be law and order situations, conflict of interests, influential people trying every way to get decisions in their favor it is how well a person convinces and sort out conflict of interest keeping in mind the larger good.

Suggestions for promotion of EI in Personal life

- **Gloeman (1998)** suggested emotional self-control as the ability to keep one's impulsive feelings and emotions under control and restrain from negative actions when provoked, when faced with opposition or hostility from others, or even when working under pressure.
- A person should possess a fair amount of intelligence quotient along with Emotional intelligence in order to become successful. If you have a high level of EI you'll find it easier to build stronger relationships, create success at work and achieve your career and personal goals.
- Emotional expressions provide **Incentives for Desired Social Behavior.** **For e.g.-** Mother having toy in hand if shows joyful expression then baby is more likely to touch the toy compared to when she shows angry expressions.
- Reuven Bar-On mentioned that EI develops over time and that It can be improved through training, programming and therapy.

- Reuven Bar-On also outlines five components of EI:- Intrapersonal, interpersonal, adaptability, stress management and general mood. Each of these five components comprises a number of closely related competencies, skills and facilitators which helps in promotion of EI in personal life.
- Through facial expression, body language, pictures, voices and so on, a person can recognize the emotions of others. This includes the individual's ability to recognize and identify their own emotions as well.

Improving Emotional Intelligence

- By self-evaluating oneself, one can know one's emotions and reactions to different situations.
- By observing others, one can comprehend the feelings of others.
- By improving one's expression, one can communicate better.
- By analyzing the impact of one's action over others, one can fine tune the actions.

Suggestions for promotion of EI in professional like, civil services.

- A bureaucrat has to have a sound decision making ability for which emotional intelligence is important. He should not be influenced by the physical and mental environment and should be able to take the best decision for the public good.
- His decisions should not be taken in a hurry and anger as these are enemy of rational decision making ability. Therefore he should be able to control his/her emotions and take a rational decision despite the situation prevailing.
- Beside, for proper formulation and implementation of policies he/she should have proper understanding of emotions and needs of common people for which emotional intelligence is necessary.
- Also while being in public he/she should be able to grasp the problem quickly and find a positive solution.
- In other day to day work too he/she should be able to motivate his/her subordinates and get the best of them. This requires proper understanding of human psychology and emotions. Hence from all the above examples it can be easily deduced Emotional Intelligence is very much important for public services in enhancing their performance and public satisfaction.
- He must be able to manage his own body language as per the protocol and requirements of the situation. **For example**, he cannot show his over enthusiasm

overtly as that could put him on the radar of suspicion and would not go well with his career.

- If a bureaucrat has to work for environmental clearance for hydro projects, then he must not get swayed away by the emotional appeals of the businessmen which would put forward their own interests. He must have enough competence to judge the situation from their gestures which are a mirror to one's thoughts.

Further, it is mandatory that every decision has to be recorded and is in accordance with the multiple rules, regulations and guidelines. This reduces the liberty in decision making and hampers initiative. In such circumstances, how a bureaucrat keeps himself motivated is also a challenge.

STATUS OF PUBLIC SERVICE VALUES AND ETHICS IN ADMINISTRATION

“Public Administration is the detailed and systematic application of law. Every particular application of law is an act of administration”

-Woodrow Wilson

The quality of the public services and the role of the public administration in their implementation have a direct bearing on the life of the citizen; the confidence of the citizens in the government and the public service delivery system. Administrative machinery that has good public ethics **builds trust, minimizing the potential issues** that can arise.

In 1996, the **UN adopted an ‘International Code of Conduct for Public Officials’** which refers to a Public Service as the class and the tasks of officials who act as the delegates of the elected officials.

The Code provided three basic tenets of a public service:

- A public office is an office of trust, implying a duty to act in the public interest. The ultimate loyalty of public officials shall be to the public interests of their country, as expressed through the democratic institutions of government.

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- Public officials shall be fair and impartial in the performance of their functions. They shall not give any undue preferential treatment to anyone, improperly discriminate against anyone or otherwise abuse the authority vested in them.
- Public officials shall strive to perform their duties effectively and in accordance with the law. They shall ensure that public resources are administered in the most efficient and economical manner.

The basic features of public administration are:

- **Impersonal Bureaucracy:** This implies a distinction between the person and the position that he holds. For the bureaucrat, it ensures impartiality and detachment in dealing with his superiors, subordinates, colleagues and citizens. For the system, it ensures a lack of bias since decisions are taken on the basis of rationality and established rules rather than personal sentiments.
- **External Financial Control:** The finances of public administration are sanctioned and regulated by the legislature. This ensures that not just the political executive but even the Opposition (and the Rajya Sabha) can influence its actions.
- **Nature of functions:** Public administration provides a comprehensive range of functions. While the private sector provides services only where adequate returns are assured, public administration provides any service which is considered vital for society. However, some of the services provided by public administration may be monopolistic in nature, making it difficult to bring about appropriate improvements in their quality.
- **Consistency of treatment:** Since every citizen is treated as equal in a democratic welfare state, public administration has to ensure that it is uniform and consistent in the execution of its functions.

Rules / Regulations / Constitutional Provisions

Constitutional & Legislative provisions

Civil Services in India can be grouped in 3 categories:

- **All India Services:** Its members serve both the union & the State.
- **Central Civil Services:** Its members serve only the central government.
- **State Civil Services:** Its members serve only the respective state government.

Following are the acts & legislations for the civil services:

1) Art 309- This Article empowers the Parliament or the State Legislature to make laws to regulate the recruitment and conditions of service of persons appointed to public services in connection with the affairs of the Union or the State respectively.

2) Art 312- This Article empowers the Parliament to make laws to create one or more All India Services (including an all India judicial services) & to regulate the recruitment and conditions of their service.

- IAS & IPS are services deemed to be created by parliament under this article.
- **Constitution 42nd Amendment Act 1976-** It made provisions for constituting an All India Judicial Services, which has not yet been formed.

3) All India Services Act 1951 – An Act which empowers the Central Government to make rules & regulate the recruitment & conditions of service of person appointed, to the AIS (viz. Indian Administrative Services, Indian Police Services & Indian Forest Services) after consultation with the Governments of the States concerned (including the State of Jammu and Kashmir).

Key objectives of creating AIS were:

- Preserving national unity and integrity and uniform standards of administration.
- Neutrality and objectivity - non-political, secular and non-sectarian outlook.
- Competence, efficiency and professionalism - at entry by attracting the best and brightest.
- Maintain integrity & idealism throughout the career.

4) The Central Civil Services Conduct Rules, 1964: To maintain integrity in public service the conduct rules were notified in 1964, which stipulate certain guidelines for the Civil servant to perform the duty with full devotion; perform the task assigned in a set time frame; shall discharge their duties in a courteous manner & shall not adopt dilatory tactics in their dealings with the public & the likes that are uncalled for like accepting bribes etc. from a civil servant.

5) The All India Services Conduct Rules 1968: To maintain integrity in public service the conduct rules were notified in 1964, which stipulate certain guidelines for the Civil servant to perform the duty with full devotion; perform the task assigned in a set time frame; shall discharge their duty in a courteous manner & shall not adopt dilatory tactics

in their dealings with the public & the likes that are uncalled for like accepting bribe etc. from a civil servant

- Though we have a Code of Conduct Rules enumerated in the Central Civil Services Conduct Rules 1964 & All India Services Conduct Rules 1968 for the Civil Servants in the form of certain guidelines to follow while discharging of one's duty, however they do not lay down the values & morals in the form of a Code of Ethics, that they should imbibe in their persona to do justice with public service.

6) Code of Ethics, 1997 – It was the first initiative to introduce the code of ethics for public servants in India, which was considered a step towards better governance.

The Salient Features of the code were as follows:

A public servant should:

- Uphold the rule of law & respect human rights.
- Maintain objectivity & transparency in their conduct with the public & discharge of their duties.
- Maintain utmost impartiality in respect of service matters.
- Be accountable for their actions for timeliness of delivery, quality of service etc. & be accessible to the people.
- Ensure effective & efficient use of public funds & avoid extravagance.
- Not exploit their position of power for any personal gains.
- The code was considered by a group of ministers but was not issued as code of ethics for public servants unfortunately.

7) Draft Public Service Bill, 2007- Again in 2007 Department of personnel drafted Public Service Bill. It extends to the whole of India & state.

It envisages a moral behavior from the civil servants & enumerates certain values which should guide the Public Servants in the discharge of their functions which are as follows:

- Allegiance to the Constitution and the law, democracy, nationalism, sovereignty integrity of India and the security of the nation.
- Function in apolitical manner, act objectively, impartially, honestly, equitably, and in a fair and just manner.
- Act with integrity and in a courteous and just manner.

- Establish high standards, and ensure quality service, effective working and prompt decision making.
- Be accountable for the decisions.
- Establish merit as the fundamental principle in employment, promotion and placements.
- Discharge functions with due regard to diversity of the nation/community and religion but without discrimination of caste, community, religion, gender or class and duly protecting the interest of poor, underprivileged and weaker sections.
- Provide honest, impartial and frank advice to political executive.
- Ensure that public money is used with utmost economy and care.

The bill is still under consideration. However it tries to fulfill too many objectives apart from a code of ethics like norms for appointments to public services etc. Thus it might get difficult to gain consensus on all such issues & pass this bill.

Present Scenario / issues / examples

PRESENT SCENARIO

The distinctive characteristics of administrative culture in India are:

- Discretionary powers are misused for personal gains but are rarely used for public welfare. The Emphasis is on personal relations rather than professional obligations.
- Feudal, self-serving mindset, with little regard for public concerns. Personal aspirations take precedence over public interest.
- Compliance with rules and procedures is given undue importance. This leads to excessive red-tapism and a resistance to change, which causes avoidable delays and makes the organization insensitive to human problems and contingencies.
- Multiple supervisory agencies make it difficult to accurately assess how a task should be executed. Further, the risk of failure and criticism inhibits innovation.
- Lack of belief in the importance of one's work or even the value of hard work itself. Many Employees feel powerless against the system.
- Rewards and punishment are determined by patronage and nepotism rather than merit.
- Superiors expect loyalty to themselves rather than to work. Non-performance is further encouraged by the principle of seniority and the presence of regulatory safeguards which make it difficult to impose penalties.

- Closed communication patterns, with limited public contact and even lesser action on public suggestions. Rigid hierarchy within the organization , with a dismissive attitude towards subordinates. Absence of effective team-work.

Thus, the status of ethics in an administrative system can be assessed through its ability to establish a balance between three important parameters:

The balance between Objectivity and Subjectivity: Each decision involves a combination of objective and subjective elements. Objective criteria are quantitative and measurable in nature, such as economic criteria, laws and rules, availability of time etc. Subjective criteria are qualitative in nature and depend upon personal judgement such as values, discretionary powers, the interpretation of circumstances, etc.

The balance between Means & Ends: Each decision involves value premises and factual premises. With regard to public administration, both premises are provided by the public as well as by administration. Since the people are the ultimate sovereign, the ends/objectives of a decision are determined by the value premises of the public.. If administrative officers cannot understand and address (promote or suppress) public values, the decision is unlikely to create meaningful welfare.

The balance between Personal & Collective Welfare: Each decision not only affects personal welfare but also has an impact on collective welfare. This makes it important for a person to adopt a selfless and caring attitude, where he focuses not just on his rights but also his duties. Ideally, duty should come before self.

ISSUES/PROBLEMS

Ethical concerns are often disregarded by administration. However, the responsibility for such lapses does not lie only with administrative officers but also with the agencies that influence their perceptions and actions.

As such, the problems of ethics in public administration include:

- **A lack of ethical literacy**, which refers to an inability to fully understand the complex ethical issues involved in a situation and results in a mechanical, rule-bound approach to problem solving. This is especially problematic in situations where officers do not have a good understanding of factors that influence the environment, such as the local history, culture, language, customs etc.
- **Societal pressures**, which refer to the irrational and unreasonable demands made upon officers by their families, peers and even members of the public at

large. This is further compounded by the poor and narrow value system displayed by society, as evident from growing prejudices, intolerance, stereotyping etc.

- While **political intervention** helps an officer determine public needs more judiciously, political interference refers to the creation of circumstances where, despite wanting to act in a different manner, an officer is compelled to ratify a poor decision. Such political interference is hard to resist because of **subjectivity in performance appraisals** and a lack of security of tenure.
- The discretionary powers of administrators place them in the unique position where they frame the rules to govern themselves. They not only formulate but also implement and, in some cases, even adjudicate upon policies. This makes it difficult to enforce accountability and necessitates self-regulation.
- A **lack of organized public opinion** against administrative deficiencies makes it difficult to correct and prevent official misconduct. This is further aggravated by a lack of awareness among the people about their entitlements and the absence of institutionalized grievance redressal mechanisms.

Corruption: In government offices, corruption is a major issue. The corruption of public officials by private interests is usually indirect, **for example**, favours by the public to the official under obligation and he gradually substitutes his public loyalties to those doing him favours. The ethical dilemma that faces the public officer with regard to corrupt practices as result of private interests primarily concerns his reaction to the situation.

Administrative Secrecy: In government offices, another major ethical dilemmas is the secret conduct of public business. This is especially so because confidentiality can provide an opportunity to cover up unethical behaviour. **Secrecy is an ally of corruption and corruption is always practiced in secret way.**

Nepotism: It is very common practice in government offices. Nepotism in the appointment of relations and/or friends to public positions and consequently, overlooking the merit principle, may lead to the decline of the quality of the public service. This **upsets trust and resulting in unethical management**, owing to the ability of a select few to weaken control measures on account of their personal relationship with the policy-maker, and by reason of their not being easily dismissed or replaced by others.

Information Leaks: It has been seen that government officials are so careless that there are cases of information leak. Official information is often a sensitive nature such a pending tax increases, rezoning land, cost-cutting of staff that disclosure of the

information can lead to turmoil, corrupt practices or, for some individuals, improper financial gains.

Public Accountability: Public officials have great responsibility to implement key public policies. They ought to be accountable for their official actions to their superiors, the courts and the public. It is however, possible for them to hide behind prescribed procedures, the cloak of competence and even political office-bearers.

Policy Dilemmas: Policy makers in government bodies are often challenged by conflicting responsibilities. They have definite loyalties to their bosses, but also to society. They have liberty to act on behalf and in the interest of others, but they must be answerable to others, their superiors and society for their actions. The official's obligation to respect the political process may conflict with his view on how the objects of policy making are treated.

Suggestions

Certain committees have recommended from time to time reforming the civil services w.r.t. to the code of conduct & ethics of the civil servants few of which are as follows:

1) Committee on Prevention of Corruption (Santhanam Committee), 1964:

- Suggested rules to be framed for **governing the conduct** of civil servant.
- Suggested that **values like altruism and empathy** for the poor, are hard to imbibe after joining the services. These need to be instilled in childhood through various institutions like family, school etc.
- There is no **code of ethics for civil servants** in our country unlike other countries, which needs to be incorporated.

2) Hota Committee Report, 2004 :

- **Aptitude & leadership test** may be introduced for selection & that domain assignments should be introduced for the civil servants for acquisition of skills required.
- As no competitive examination can be a proof against unsuitable candidates for the public service, the committee recommended **invoking the probation rules** to weed out such officers. Also a **performance review** after 15 yrs of service is recommended to remove such officers.
- **Code of Ethics** should be laid down for the civil servants for imbue the values of integrity, merit & excellence in public service.

The **Second Administrative Reforms Commission** in its 10th report pertaining to Values & Ethics of Civil Services in India recommended drafting a Bill on ethics to give code of ethics a statutory basis in the form of “The Civil Services Bill” (2nd ARC has recommended to rename public service bill as civil service bill as public service has a wider connotation).

The commission recommended that in addition to upholding the constitutional spirit the civil servants shall be guided by the following values:

- Adherence to the highest standards of integrity & conduct.
- Impartiality & non-partisanship.
- Objectivity.
- Dedication to public service.
- Empathy & compassion towards the weaker sections.

ETHICAL DILEMMA

BASIC DEFINITION AND EXPLANATION

An ethical dilemma is a decision that needs a choice among various principles, mostly in difficult and importance contexts. Personal self-interest should be secondary to the common good in all situations, especially when such circumstances give rise to conflict of interest. It can lead to an ethical dilemma.

Davis, Aroskar ,Liaschencko, and Drought, 1997:-A dilemma is described as a grim problem apparently incapable of a satisfactory solution or a situation involving choice between equally unsatisfactory alternatives.. He also **suggested five defining features of dilemma** as there were **engagement, equally unattractive alternatives, awareness of the alternatives, the need for a choice, and uncertainty of actions.**

An ethical dilemma is a situation involving conflicting moral claims and give rise to such questions as “What ought I to do?” and “What harm and benefit result from this decision or action?”

Ellis and Hartley (2001) assert that ethical dilemmas have no perfect solution, and those making a decision may find themselves in a position of having to defend their decisions.

Ethical dilemmas are in three broad categories:

Personal Cost Ethical Dilemmas, arising from situations in which compliance with ethical conduct results in a significant personal cost (e.g. jeopardizing held position, missing opportunity for financial or material benefit, injuring valued relationship etc.) to the public-servant-decision-maker and/or the Agency;

- **Right-versus-Right Ethical Dilemmas**, arising from situations of two or more conflicting sets of bonafide ethical values (e.g. public servants' responsibility of being open and accountable to citizens versus that of adhering to the Oath of Secrecy/Confidentiality etc.); and

- **Conjoint Ethical Dilemmas**, arising from situations in which a conscientious public-servant-decision-maker is exposed to a combination of the above-indicated ethical dilemmas in searching for the "right-thing-to do."

Ethical Dilemmas Faced by Public Servants are as follows:

1. Administrative discretion
2. Corruption
3. Nepotism
4. Administrative secrecy
5. Information leaks
6. Public accountability
7. Policy dilemmas
8. Duty v/s Humanity

The reason for these dilemmas are contributed to the following factors, These are

Moral Weakness- a person of low moral values are prone to be in a dilemma when beneficial situation arise. On the other hand, a person of strong character will always adhere to his/her moral values no matter how hefty the favor is?

Comparative lifestyle- differences in remuneration in the private sector and public sector drive public sector employees to fall in ethical misconduct in order to maintain their lifestyle under growing societal pressure.

Meager Salary to lower grade employees- Salary paid to D and C grade government employees are not sufficient to fulfill their basic needs which gets dearer day by day.

Lack of social Security- In our Country public institutions like public schools and medical institutions are inefficient in comparison to private one which efficiency comes at cost. There is no social security given to people by the government as it is done in developed Countries.

The most important traits in helping with one's ethical dilemmas regardless of the causes of these dilemmas are :

- level of empathy
- courage and fearlessness
- Critical mindset
- moral uprightness
- adequate information and knowledge to judge based on reliable facts
- sense of neutrality and accommodation of views;
- no inherent stereotypes and prejudices; etc

Examples:

- **Corruption:** As a CAG, it is his duty to safeguard Tax Payers money and make sure every rupee is spent in a way as required. But when he finds out gross violation and brings it to the notice of concerned official they ask him to go slow. Here he is faced with dilemmas of whether to call Press conference and bring to the notice or keep quiet. Official rules forbid Civil servants from going to press.
- **Nepotism and Information Leaks:** As a Civil servant working in Defense Ministry, u find out that certain arms contracts are going for a particular firm associated with a Union Ministry official. In this situation, neither u cannot be a whistleblower, since it concerns National Security and it is covered by the Official Secrets act or go silent.
- **Duty vs Humanity:** Crowds are going unruly during a Bandh called by a particular outfit. They are damaging public property and Local police is not able to control

them. Army has to be called in and power to use fire arms has to be given, but the protestors include Women and Aged persons.

- The political activity of public servants resulting in divided loyalty on the part of those officials who sympathized with the views of a specific political party.
- Should he actively participate in party politics? Or should he

endeavour only to promote the public good and uphold the

high standards of public office?

Ethical dilemmas also arise in the following situation:

1. · When his expert directives are in contrast with his own personal values.
2. · Working towards the best interest of the community versus being responsive to the government.
3. · Ethical dilemmas can arise, when two equally striking options are acceptable as 'right' in certain situations.

Suggestions on dealing with it

1.Eichmann also had ethical dilemmas, whether to take side of Humanity and not carry out killings or conduct as per his oath of office to obey the commands of Hitler. Civil servant will face it every day. So decisions have to be taken with utmost sincerity so that it causes maximum benefits and less harm to Society and National Interests.

2.Ethical dilemmas can be addressed by the combined effort of government and society at large. High moral values should be imbibed by institutions and parents to the children. Public employees should be given handsome salary and high dearness allowance and other perks. Government should work on social security part. Public institutions should be strengthened. There should be a mechanism to provide economic security in case of loss of job and unemployment and good medical facility at cheap rate and high quality education at government schools and colleges and all other basic needs should be made easily available and affordable by government.

3.Personal self-interest should be secondary to the common good in all situations, especially when such circumstances give rise to conflict of interest.

4.A dilemma should be dealt appropriately by considering and reformulating all the options in a systematic and coherent manner.

5.To resolve such ethical dilemmas, an order or a sequence of logical reasoning is a must to integrate and rearrange the process of dealing with ethical dilemmas.

6.The decisions should be guided by the following principles:

- The provisions of Indian Constitution.
- Democratic accountability of administration.
- The rule of law and the principle of legality.
- Professional integrity.
- Impartiality and neutrality.
- Larger public good.
- Responsiveness to civil society.

7.The bureaucracy should be loyal to the country and its people while decision making considering the consequences of such decisions.

8.It is fundamental ethical duty of civil servants to show a spirit of neutrality and discretion and keep their own personal preferences out in the performance of their duties and responsibilities.

Civil servants are responsible for providing justice to many lives. Their impartiality and neutrality is must to uphold his/her duty towards society. Dilemmas arise many times in life of civil servants while performing their duties. What required is the objective decision making for larger public benefit.

CODE OF ETHICS

DEFINITION

- A Code of Ethics is a guide of principles designed to help professionals conduct of administration honestly and with integrity.
- A Code of Ethics document may outline the mission and values of the organization, how professionals/civil servants are supposed to approach problems, the ethical principles based on the organization's core values and the standards to which the professional/civil servants held.

BASIC EXPLANATION

- Public codes of ethics, especially in developing democracies, can play a crucial role in articulating the mission of the public service. The foundation of all successful bureaucracies is integrity, objectivity and effectiveness.
- Most public service codes emphasize these standards through principle based statements such as not using your public office for private gain (**integrity**), showing impartiality in carrying out your public duties (**objectivity**), or the implied obligation in public service being a public trust (**effectiveness**). Together these can articulate a common mission for public servants, who are otherwise separated by their bureaus, profession and expertise.

Function of Code of Ethics

Ethics codes can be distinguished according to two principle categories:- the group enacting the code, and the functions of the code within that group.

Groups:-

- **Professional:** applying only to members of a certain profession
- **Organizational:** applying only to members or a certain class of members of the association formally enacting code
- **Practice-specific:** applying to anyone involved in a certain voluntary practice

Principles of code of ethics:

The five fundamental principles of code of ethics are as under:

1. Integrity: A professional should be straightforward and honest in all professional and business dealings.

2. Objectivity: An expert should not allow bias, conflict of interest or unnecessary influence of others to supersede professional or business judgments.

3. Professional competence and due care is another principle of code of ethics. A professional has a responsibility to maintain professional knowledge and skill at the level required to guarantee that a customer or employer receives competent professional service based on current developments in practice, legislation and techniques.

4. Confidentiality: An expert should respect the confidentiality of information acquired as a result of professional and business relationships and should not reveal any such information to third parties without proper and specific authority unless there is a legal or professional right or duty to disclose.

5. Professional behavior: A professional should obey with pertinent laws and regulations and should avoid any action that discredits the job.

UNETHICAL CODE

Forms of unethical or inappropriate conduct which should be prohibited either in policy or directly in the Code of Ethics include:

1. Abuse of the personal privileges of office.
2. Secret commissions.
3. Inappropriate gifts.
4. Acts of slander and libel.
5. Nepotism.
6. Employee discrimination and harassment.
7. Criminal acts.
8. Non-Reporting of questionable and fraudulent acts.

Importance of a Code of Ethics:

1. Codes of ethics provide at most a strong prima facie reason to act in a certain way.
2. Codes of ethics can clearly articulate unacceptable behaviors as well as providing a vision for which the government official is striving
3. Code of Ethics provide accountability between public and the administration.

4. It gives the administration guidelines for integrity in their operations. That integrity in turn, helps foster the trust of the company.
5. Code of Ethics creates standards of professionalism that co-workers in the public sector can expect from each other.
6. Code of Ethics also provides timely and informative communication with the community in public administration.
7. Everyone employed in the public services has a part to play in earning public respect for government and maintaining confidence in the institutions of government.
8. With a strong code of ethics in public administration, leaders have the guidelines they need to carry out their tasks and inspire their employees and committees to enforce laws in a professional and equitable manner.
9. A code of ethics is important because it helps employees or organization members make decisions that are in line with company values in the absence of a clear rule or direct supervision. A code of ethics can improve decision making at a business, and make it easier for employees to be autonomous

ISSUES/CHALLENGES

1. As per **2nd ARC Recommendations**, there is no Code of Ethics prescribed for civil servants in India although such codes exist in other countries. What we have in India are several Conduct Rules, which prohibit a set of common activities. These Conduct Rules do serve a purpose, but they do not constitute a Code of Ethics.
2. The primary critique of ethics codes is that they are too abstract and because of that they are difficult to enforce. Although there is some truth to both of these critiques, usually the problem lies with the institutionalization of the civil service and the ability to enforce behavior in only the most narrow of areas. Any code without an effective institutional implementation strategy is just words.
3. Another variable to explain why codes do not work is the potential shift of political will. Political leadership changes in democratic societies and with that change can come shifting policy agendas.
4. Codes also fail if there is no notion of a professional public service. Codes can be used to build that professionalism. However, if the public employee's motive is not to accomplish their work, to serve their country or to further the mission of their agency then it will be very difficult to make a code effective.

5. The current set of 'enforceable norms' are 'Conduct Rules', typified by the **Central Civil Services (Conduct) Rules - 1964** and analogous rules applicable to members of the All India Services or employees of various State Governments. The norms prescribed in such rules are much older than the Rules themselves. Thus specific acts were proscribed from time to time through notifications under the Fundamental Rules and the Civil Service Regulations.

EXAMPLES

- If a civil servant whose cousin has asked him to give him a government contract. Without a code it would be a moral choice on his or her part. With a code the civil servant is reminded that it violates expectations for civil servants, it could result in losing his or her job, and it moves the action from not helping a family member to do the right thing.
- An excellent example is in contracting or procurement. Government processes are often cumbersome to allow for fairness. If efficiency alone were the standard, contracting officials would be easily tempted to ignore the rules to expedite the process. However, if it is clear that the overriding principle is impartiality in carrying out your public duties it is very difficult to justify giving the contract to your wife's company on efficiency grounds.

SUGGESTIONS

1. A draft "**Public Service Bill**" 2007, now under consideration of the Ministry of Personnel, Public Grievances and Pensions seeks to lay down a number of generic expectations from civil servants. The following "values" envisaged in the bill:

- Allegiance to the various ideals enshrined in the preamble to the Constitution
- Apolitical functioning
- Good governance for betterment of the people to be the primary goal of civil service
- Duty to act objectively and impartially
- Accountability and transparency in decision-making
- Maintenance of highest ethical standards
- Merit to be the criteria in selection of civil servants consistent, however, with the cultural, ethnic and other diversities of the nation
- Ensuring economy and avoidance of wastage in expenditure
- Provision of healthy and congenial work environment

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- Communication, consultation and cooperation in performance of functions i.e. participation of all levels of personnel in management.

2. The Committee on Prevention of Corruption (**'Santhanam Committee'-1964**) had remarked: "For a country like India, development of her material resources and raising the standards of life of all classes are, indeed imperative. At the same time, the deterioration in the standards of public life has to be arrested. The lack of moral earnestness, which has been a conspicuous feature of recent years, is perhaps the greatest single factor which hampers the growth of strong traditions of integrity and efficiency."

3. There should be some other requisite elements necessary to support a code. There must be a viable legal system. Rather, there must be laws that deal with corruption, ways of adjudicating administrative violations, investigators, prosecutors and a judiciary with some independence

4. An individual places highest regard for service i.e. "Service before self". Something like a soldier feels on war front or doctor feels in operation theatre. Similarly a public servant should feel while administering.

5. An individual needs very high personal morals and needs to internalize principles of honesty and Integrity. These weapons will always immunize one from surrendering to a wrong doing and face repercussions boldly.

6. A sense of purpose, commitment to service and serving others, dedication for job and respect for law are some general values which needs to be imbibed along with patience and perseverance.

PROBITY IN GOVERNANCE

" POWER CORRUPTS AND ABSOLUTE POWER CORRUPTS COMPLETELY"

--Sir John Dalberg-Acton

BASIC DEFINITION AND EXPLANATION

- The dictionary meaning of probity refers to integrity, trust, character, justice, honesty, rectitude and uprightness. Hindi **Meaning of Probity** is “Satya-Nishtha”.
- The term probity entails integrity, uprightness and honesty. For Government workers and agencies, maintaining probity involves more than simply avoiding dishonest conduct. It involves applying public sector values such as **impartiality, accountability and transparency**. Probity is also considered as being incorruptible.
- Probity in Governance also elucidates that apart from the traditional civil service values of efficiency, integrity, accountability and patriotism, it is essential for civil officers to instruct and adopt ethical and moral values including probity in public life, respect for human rights and compassion for the downtrodden and commitment to their welfare.
- It is also regarded as strict obedience to a code of ethics based on undeviating honesty, especially in commercial (monetary) matters and beyond legal requirements.

GOVERNANCE

World bank: Governance is defined as the manner in which power is exercised in the management of a country's economic and social resources for development. This considers the process by which governments are selected, monitored and replaced; the capacity of the government to effectively formulate and implement sound policies and the respect of citizens and the state of the institutions that govern economic and social interactions among them.

UNDP :“Governance has been defined as the rules of the political system to solve conflicts between actors and adopt decision (legality)”. It has also been used to describe the proper functioning of institutions and their acceptance by the public (legitimacy). And it has been used to invoke the efficacy of government and the achievement of consensus by democratic means (participation)

Objective of Probity in Governance:

There are several objectives of probity of governance that are mentioned below:

- To ensure accountability in governance;
- To maintain integrity in public services;
- To ensure compliance with processes;

- To preserve public confidence in Government processes;
- To avoid the potential for misconduct, fraud and corruption.

PRINCIPLES OF PROBITY

- **Accountability**-In the OECD countries ,there are strong administrative conditions: public servants have full personal responsibility for the lawfulness of their official acts. Consequently, they have to answer, in terms of penal law ,disciplinary regulation and liability provisions, for any unlawful official act,even if a senior officer has approved such unlawful official action. This type of regulation must be implemented in India also.
- **Transparency**-In public administration the term transparency is used to imply openness.An organization is said to be transparent when its decision making and manner of working is open to public and media scrutiny and public discussion.A transparent system of administration helps to engender participation by the public in the decision making processes of government thus contributing to a grass roots level and functioning democracy.
- **Confidentiality**- A government servant under the civil service rules is under an obligation not to disclose to anyone, including a fellow government servant any information acquired by him during the course of his official duties.This is provided by **Rule 8 of the Central Civil Service (conduct) Rules 1955**.
- **Management of Conflicts of Interest**-India has an official policy,regulated by the Ministry of Personnel,whereby senior bureaucrats have to seek permission for commercial employment after their retirement.However such grants of permission within cooling-off period primarily on government discretion,with no codified mechanism.There is nothing wrong in letting experienced bureaucrats utilize their expertise in the private sector –if ad equates rules are framed and followed that enable the elimination of any conflict of interest.

EXAMPLES

- Recently **Justice Kurian Joseph** went to Vatican for canonisation of Mother Teresa. He is on the bench adjudicating the dispute between India and Italy over the jurisdiction to try two Italian marines. He skipped the dinner where senior officials of the Italian government were also invited. He supposing did it to avoid perceived conflicts of interest and maintain probity of his office.
- **Tirunellai Narayan Iyer Seshan** known as T. N. Seshan is a retired 1955 batch IAS officer of Tamil Nadu, he ensured upright conduct of staff under him .He strictly implemented all laws regarding electoral malpractices. He worked for

elimination of several malpractices like bribing or intimidating voters, use of official machinery for campaigning ,use of loudspeakers and high volume music without prior written permission.

- **B. D. Sharma** joined IAS in 1956, as a Bastar District collector in MP, he was credited with launching a slew of welfare schemes for the well-being of tribals in the area. He adhered to the principles of public life.He took strict action against the government employees for dereliction of duty.
- Tough action against illegal sand Mining by IAS **officer Durga Shakti Nagpal** or against illegal land deal by **Ashok Khemka** sets an example of essence of probity among govt. officers.
- For instance Indian High Commissioner to the United Kingdom **Navtej Sarna** walked out of a book launch event attended by **Vijay Malya** to avoid any sense of crony capitalism and show zero tolerance for corrupt people. Even if he would have stayed it wouldn't have been illegal or unethical as he would have been honoring the invitation by the organizers. But he chose to leave
- The confession of **Army chief of India's** neighboring country that India needs to be emulated in democracy implementation and the armed forces should not meddle with politics. He was honest and pragmatic despite possible and severe internal and external repercussions.
- Recently, the former **CBI director** has been accused of meeting some of the persons on whom the inquiries are underway. Whether it had malicious intentions or not, he has not adhered to probity. It would have been in public interest if he stayed away from meeting the accused because it eroded public confidence in the institution

IMPORTANCE

- To ensure **Accountability** in governance which will help to promote **Public Confidence** in govt processes.
- For promoting **Impartiality** thus reducing **Conflict Of Interest** so procedures can be implemented and managed effectively.
- Promotes Transparency thus ensuring interests of all stakeholders are taken into consideration.
- To curb corruption,nepotism,misconduct etc thus increasing **Efficiency** of an organization.
- It ensures that Benefits must be reaching to the lowest level of democracy.
- It helps eliminate considerations for acts of favoritism and nepotism.

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- Poverty, illiteracy, low health care, and unemployment are the major challenges before the country and the biggest hurdle that prevents us from overcoming these challenges is the lack of probity in public life.
- Probity in governance is the antithesis of corruption in public life.
- Probity is emphasized by the UN Convention against corruption. Probity is the evidence of ethical behavior in a particular process.

ISSUES/CHALLENGES TO PROBITY IN GOVERNANCE:

- Corruption
- Evils of coalition government
- Absence of transparency and accountability
- Unrealistic code of conduct
- Toothless laws and institutional arrangements
- Unholy politician bureaucratic businessman nexus
- General disintegration of ethics in the society
- Growth of materialism as a result of globalization
- Slow and tardy case disposals and justice delivery

SUGGESTIONS

- According to **Second Administrative Reforms Commission**, apart from the traditional civil service values of efficiency, integrity, accountability and patriotism, it is necessary for civil servants to inculcate and adopt ethical and moral values including probity in public life, respect for human rights and compassion for the downtrodden and commitment to their welfare.
- The probity of governance is closely related to “**equality before law**”. Eg: it is not wrong if a file before government is cleared within two days if all citizens with similar file status can get it cleared in two days. Only a government that is based on probity can ensure that a normal citizen is not discriminated when someone powerful comes for the same.
- Framing effective laws, rules and regulations governing every aspect of public life and, more important, an effective and fair implementation of those laws, etc
- The education should evolve as a system where morals, ethics, non-violence, truth, brotherhood, honesty, integrity and uprightness become part of the

curriculum. Aim should be to channelize the youth in the right direction so as to establish an orderly society. An orderly society brings probity in public life and thus it becomes a norm.

- Revisiting the **pledge of '97: At the Golden Jubilee of Independence**, parliamentarians took a pledge to carry out meaningful electoral reforms to cleanse public life, ensure greater transparency, probity and accountability, so as to make legislative bodies balanced and effective instruments of democracy.
- Probity in governance is an essential and vital requirement for an efficient and effective system of governance and for socio-economic development. Ensuring probity in public sector activities by civil servant is part of every public official's duty to adopt processes, practices and behaviour that enhance and promote public sector values and interests.

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2018 AIR 118 SOUMYA RANJAN ROUT

Hi, This is Soumya Ranjan, CSE 2018 was my first attempt straight out of college. It was impossible for me to get someone to analyze my answers, I approached IAS.NETWORK for GS Answer Evaluation. They checked the answers and provided good feedback which helped me improve my score. Their response time was immediate and they analyzed answers on their merit while avoiding being overly critical.

Their COMPILATIONS were also helpful. I would like to thank IAS.NETWORK for their excellent service and dedication, would recommend them to anyone who is looking for excellent GS Answer and Essay Evaluation.



2017 IAS NIKHIL NIPPANIKAR

I would like to thank the dedicated team behind IAS NETWORK, this website was extremely useful to me during my UPSC preparation, helping me score 146 in essay paper this was a drastic improvement from 58 marks that I got in my first mock test.

I used their reading materials and sent my essays for evaluation every weekend. I improved my score and in the last 10 essays that I wrote, I got scores between 140-160. It was a pleasant surprise to me when I got 146 in my essay paper, very close to what was predicted.

This shows the depth of understanding and experience that the team has. They are highly dedicated and responsive. I wish the team good luck and hope many more aspirants like me realize their dream and hopefully IAS NETWORK will play an important role in it.



2017 IRS SIDDHANT DAS

Since it was my first attempt and i had opt for self evaluation I did not know whether my essays were any good. This is when I approached IAS.NETWORK to check one of my essay and glad I did. They clearly pointed out flaws in my essay and said that i could get 150+ with a few tweaks. I tried to incorporate their advice and ended up with a 152 in final exam. I am grateful to the team of IAS.NETWORK and would urge aspirant to avail their services

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